Rizzetta & Company

Bobcat Trail
Community Development District

Board of Supervisors' Meeting
October 1, 2024

District Office:
9530 Marketplace Road, Suite 206
Fort Myers, Florida 33912
(239) 936-0913

www.bobcatcdd.com

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288

www.bobcatcdd.com

Board of Supervisors	Jeffrey Brall	Chairperson
	Richard Burke	Vice Chairman
	Steven Ball	Assistant Secretary
	Michael SanAntonio	Assistant Secretary
	Paul Fisher	Assistant Secretary
District Manager	Belinda Blandon	Rizzetta & Company, Inc.
District Counsel	David Jackson	Persson, Cohen, Mooney, Fernandez & Jackson, P.A.
District Engineers	Robert Dvorak	BDI Engineers

All cellular phones must be placed on mute while in the meeting room.

The Audience Comment portion of the agenda is where individuals may make comments on matters that concern the District. Individuals are limited to a total of three (3) minutes to make comments during this time.

Pursuant to provisions of the Americans with Disabilities Act, any person requiring special accommodations to participate in this meeting/hearing/workshop is asked to advise the District Office at least forty-eight (48) hours before the meeting/hearing/workshop by contacting the District Manager at (239) 936-0913. If you are hearing or speech impaired, please contact the Florida Relay Service by dialing 7-1-1, or 1-800-955-8771 (TTY) 1-800-955-8770 (Voice), who can aid you in contacting the District Office.

A person who decides to appeal any decision made at the meeting/hearing/workshop with respect to any matter considered at the meeting/hearing/workshop is advised that person will need a record of the proceedings and that accordingly, the person may need to ensure that a verbatim record of the proceedings is made including the testimony and evidence upon which the appeal is to be based.

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

District Office · Ft. Myers, Florida · (239) 936-0913
Mailing Address · 3434 Colwell Avenue, Suite 200, Tampa, Florida 33614

www.bobcatcdd.com

September 23, 2024

Board of Supervisors
Bobcat Trail Community
Development District

AGENDA

Dear Board Members:

The regular meeting of the Board of Supervisors of Bobcat Trail Community Development District will be held on **Tuesday, October 1, 2024, at 3:00 p.m.**, at the Bobcat Trail Community Center located at 1352 Bobcat Trail Blvd., North Port, FL 34288. The following is the agenda for this meeting:

1. **CALL TO ORDER/ROLL CALL**
2. **PLEDGE OF ALLEGIANCE**
3. **APPROVAL OF AGENDA**
4. **PUBLIC COMMENTS**
5. **BUSINESS ADMINISTRATION**
   - A. Consideration of the Minutes of the Board of Supervisors' Meeting held on September 3, 2024..... Tab 1
   - B. Consideration of the Minutes of the Board Workshop Held on September 09, 2024..... Tab 2
6. **OLD BUSINESS**
   None
7. **NEW BUSINESS**
   - A. Appointment of an Audit Committee and Scheduling the First Meeting of the Committee
   - B. Discussion and Consideration of Artistree Storm Clean-up Costs
   - C. Discussion and Consideration of Request from North Port Farmers Market for Use of Portion of Bobcat Village Center Rd.
8. **CONSENT ITEMS**
   - A. Acceptance of Committee Meeting Minutes ..... Tab 3
     1. Landscape Committee Meeting Minutes of August 20, 2024
9. **STAFF REPORTS**
   - A. Field Manager
   - B. District Engineer
   - C. District Counsel
   - D. District Manager
10. **OTHER REPORTS**
    - A. Infrastructure/Asset Management Committee (Board Workshop)
    - B. Landscape Committee
    - C. Newsletter Supervisor

D. Finance Supervisor
E. Lakes and Roads Supervisor
   i. Solitude Waterway Inspection Report
   ii. Solitude Monitoring Reports
F. Maintenance Supervisor
G. Facilities Supervisor
H. HOA Updates
I. Commercial Properties

11. PUBLIC COMMENTS
12. SUPERVISOR REQUESTS
13. ADJOURNMENT

We look forward to seeing you at the meeting. In the meantime, if you have any questions, please do not hesitate to call us at (239) 936-0913.

Very truly yours,
Belinda Blandon
Belinda Blandon
Senior District Manager

cc: David Jackson: Persson, Cohen, Mooney, Fernandez & Jackson, P.A.

Tab 1

MINUTES OF MEETING

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

The regular meeting of the Board of Supervisors of the Bobcat Trail Community Development District was held on **Tuesday, September 3, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

Jeffrey Brall	**Board Supervisor, Chair**
Richard Burke	**Board Supervisor, Vice Chair**
Steven Ball	**Board Supervisor, Assistant Secretary**
Michael SanAntonio	**Board Supervisor, Assistant Secretary**
Paul Fisher	**Board Supervisor, Assistant Secretary**

Also present were:

Belinda Blandon	**District Manager, Rizzetta & Company, Inc.**
David Jackson	**District Counsel, Persson, Cohen, Mooney, Fernandez & Jackson, P.A.**
Audience	

FIRST ORDER OF BUSINESS **Call to Order/Roll Call**

Ms. Blandon called the meeting to order and read roll call.

SECOND ORDER OF BUSINESS **Pledge of Allegiance**

The Board, Staff, and Audience recited the Pledge of Allegiance.

THIRD ORDER OF BUSINESS **Approval of Agenda**

Mr. Fisher added resident concerns to New Business.

Ms. Blandon added consideration of the Brown & Brown insurance renewal proposal to New Business.

On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board approved the agenda for the Bobcat Trail Community Development District as amended.

FOURTH ORDER OF BUSINESS **Public Comments**

Mr. Verrill commented on the minutes from the previous meeting that erroneously

DRAFT

stated that the Tract B Lake was being transferred to the CDD. It was noted that this was a typographical error.

Mr. O'Neal at Canary Palm Way requested a status update with the FEMA appeal. He also requested information about the CDD fees for the golf course property and their payment status.

FIFTH ORDER OF BUSINESS **Consideration of the Minutes of the Board of Supervisors' Meeting held on August 06, 2024**

Ms. Blandon presented the Minutes of the Board of Supervisors meeting held on August 06, 2024, and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. SanAntonio, seconded by Mr. Burke, with all in favor, the Board Approved the Minutes of the Board of Supervisors Meeting held on August 06, 2024, for the Bobcat Trail Community Development District.

SIXTH ORDER OF BUSINESS **Consideration of the Minutes of the Board Workshop held on August 15, 2024**

Ms. Blandon presented the Minutes of the Board Workshop held on August 15, 2024, and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. Brall, seconded by Mr. San Antonio, with all in favor, the Board Approved the Minutes of the Board Workshop held on August 15, 2024, for the Bobcat Trail Community Development District.

SEVENTH ORDER OF BUSINESS **Discussion of HB 7013 – District Goals and Objectives and Consideration of Resolution 2024-11, Adopting Goals and Objectives**

Ms. Blandon asked the Board which Goals and Objectives they selected. Mr. Brall answered that they selected Financial Transparency and Teamwork. The Board agreed. With no further discussion regarding Goals and Objectives, Ms. Blandon then presented Resolution 2024-11 to the Board for Consideration. There were no comments or questions.

> On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Adopted Resolution 2024-11, Adopting Goals and Objectives for the Bobcat Trail Community Development District.

DRAFT

EIGHTH ORDER OF BUSINESS **Discussion and Consideration of Proposals for Reserve Study**

Mr. Brall advised that the Board reviewed the estimates at the prior workshop and there was a consensus in favor of Custom Reserves' proposal.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Approved the proposal from Custom Reserves in the amount of $5,400.00, for the Bobcat Trail Community Development District.

NINTH ORDER OF BUSINESS **Discussion Regarding Roadway Pavement Assessment Report and Review of Cash Flow Analysis**

Mr. Ball discussed the report and advised that to-date, Phase One (Coconut Palm) and Two (Royal Palm) have been completed. Mr. Ball suggested that the project move forward, and that RFPs be done for Phase Three (Phoenix Palm Terrace), Four (The Villas), and Five (Silver Palm). He then expressed concern that the cash flow analysis presented in 2020 might not accurately account for inflation. Ms. Blandon asked if there was any available data on the amount of square yardage per phase. Mr. Ball affirmed that there was. He then mentioned some areas that may need to be touched up as part of the next three phases of the project.

TENTH ORDER OF BUSINESS **Public Hearing to Consider the Adoption of the FY 2024/2025 Budget and the Imposition of Operations and Maintenance Special Assessments, Adoption of an Assessment Roll, and the Levy, Collection, and Enforcement of the Same**

Ms. Blandon advised that the Fiscal Year 2024/2025 Budget and the Special Assessments would be covered under one Public Hearing. She further advised the Audience that they may comment on either issue during the Public Hearing.

On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Opened the Public Hearing to Consider the Adoption of the FY 2024/2025 Budget and the Imposition of Operations and Maintenance Special Assessments, Adoption of an Assessment Roll, and the Levy, Collection, and Enforcement of the Same, for the Bobcat Trail Community Development District.

Ms. Blandon advised that the Public Hearing was open. She asked the Audience if there were any comments regarding the budget or the imposition of special assessments. There were none.

DRAFT

On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board Closed the Public Hearing to Consider the Adoption of the FY 2024/2025 Budget and the Imposition of Operations and Maintenance Special Assessments, Adoption of an Assessment Roll, and the Levy, Collection, and Enforcement of the Same, for the Bobcat Trail Community Development District.

ELEVENTH ORDER OF BUSINESS **Presentation of the Proposed Final Budget for Fiscal Year 2024/2025 and Consideration of Resolution 2024-09, Annual Appropriations and Adopting the FY 2025 Budget**

Ms. Blandon presented the Proposed Final Budget for Fiscal Year 2024/2025 with a General Fund budget of $1,105,945.00, which includes an increase of $114,679.00. She then asked if there were any questions.

Mr. Fisher inquired about why golf course information was not available under the budget narrative. Ms. Blandon advised that the budget was prepared by the former management company, and she was therefore unable to speak to the issue. Board discussion ensued about the golf course.

On a Motion by Mr. Fisher, seconded by Mr. Brall, with all in favor, the Board Adopted Resolution 2024-09, Annual Appropriations and Adopting the Fiscal Year 2024/2025 Budget, for the Bobcat Trail Community Development District.

TWELFTH ORDER OF BUSINESS **Consideration of Resolution 2024-10, Making a Determination of Benefit; Imposing Special Assessments, Providing for the Collection and Enforcement of Special Assessments**

Ms. Blandon asked if there were any questions or comments about the Resolution. There were none.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Adopted Resolution 2024-10, Making a Determination of Benefit; Imposing Special Assessments, Providing for the Collection and Enforcement of Special Assessments, for the Bobcat Trail Community Development District.

THIRTEENTH ORDER OF BUSINESS **Discussion Regarding Pool Pump and Cost Savings**

Mr. Burke discussed turning off the pool pump for six hours a day (11 p.m. until 5 a.m.) using a timer to reduce costs by 25%. He noted that the timer should be relatively inexpensive.

DRAFT

On a Motion by Mr. Burke, seconded by Mr. Brall, with all in favor, the Board Approved the purchase of a timer and completion of the work needed to implement the idea, with a not-to-exceed amount of $1,000.00, for the Bobcat Trail Community Development District.

FOURTEENTH ORDER OF BUSINESS **Consideration of Brown & Brown Proposal for Insurance Renewal**

Ms. Blandon covered the insurance renewal proposal in detail with the Board. She discussed the Cyber Attack coverage with the Board, informing them that it was an optional coverage. Brief Board discussion ensued. The Board decided to forego the optional coverage.

On a Motion by Mr. Burke, seconded by Mr. Brall, with all in favor, the Board Approved the renewal proposal from Brown & Brown Insurance, in the amount of $37,931.00, subject to the removal of the Cyber Attack Coverage Endorsement, for the Bobcat Trail Community Development District.

FIFTEENTH ORDER OF BUSINESS **Resident Concerns**

Mr. Fisher discussed an email sent by a concerned resident regarding the signs on the monuments. Brief Board discussion ensued about the work recently redone on the monuments, including the repainting of the lettering and confirming that the signs were not taken down for repainting. Mr. Burke advised that he will have the signs looked at for repair.

SIXTEENTH ORDER OF BUSINESS **Acceptance of Landscape Committee Meeting Minutes of July 16, July 22, July 25, and July 30, 2024**

Ms. Blandon presented the Landscape Committee Meeting Minutes from July 16, July 22, July 25, and July 30, 2024, for Board acceptance.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Accepted the Landscape Committee Meeting Minutes of July 16, July 22, July 25, and July 30, 2024, for the Bobcat Trail Community Development District.

SEVENTEENTH ORDER OF BUSINESS **Staff Reports**

A. Field Manager
Mr. Fowler was not in attendance and thus, provided no comment on his report. Ms. Blandon advised the Board that she could forward any questions, comments, and/or concerns to Mr. Fowler. Mr. Brall commented on the landscape portion of the report and noted that several items had not yet been addressed.

B. District Engineer
There was no report.

DRAFT

C. District Counsel

Mr. Jackson verified the typographical error made in the last meeting's Minutes. He noted that 'Tract B' should be changed to 'Tract E,' and encouraged a motion to amend the Minutes. He also advised that the HOA would be meeting on the issue soon.

On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board approved the amendment of the Minutes from the Board of Supervisors Meeting held on August 6, 2024, changing 'Tract B' to 'Tract E,' for the Bobcat Trail Community Development District.

Mr. Jackson provided updates on some litigation matters. Regarding the foreclosure, Mr. Jackson advised that Cloud Ten filed an answer. He also advised he has been in contact with the bank's counsel regarding some legal description issues. Mr. Jackson then provided updates on the gate arm litigation case and advised that a motion to dismiss was filed due to statute of limitations and was currently pending. He received a call from an attorney's office in Orlando pertaining to litigation regarding an injury sustained by a subcontractor during sidewalk repair work.

Mr. Jackson advised that a termination letter was sent to LMP, and a copy was issued to the Board. He further advised that termination will be effective September 30, 2024, and that deficiencies were included in the termination letter. Mr. Jackson also informed the Board that a draft contract was prepared for Artistree and was pending.

Mr. Brall advised that LMP's May, June, July, and August payments have been held back pending completion of work. He noted that the only work done by LMP in August was mowing, no trimming or weeding. Brief Board discussion ensued.

Mr. Jackson advised that the Board should work with Mr. Fowler and to continue to document work done by LMP. Additional Board discussion ensued.

D. District Manager

Ms. Blandon advised that the next Board of Supervisors meeting is scheduled for Tuesday, October 1, 2024, at 3:00 p.m.

She advised that updates were sent to the Board by email regarding the transition. Ms. Blandon informed the Board that the financials are still pending because Inframark had not sent over reconciliations which was causing a delay.

Ms. Blandon briefly discussed the Boards' credit cards to determine who needed one so that she could have accounting work with the bank to have those sent out. It was advised that Mr. Burke and Mr. Ditterline both needed a card.

EIGHTEENTH ORDER OF BUSINESS Other Reports

A. Infrastructure/Asset Management Committee (Board Workshop)

Mr. Brall asked that if the Board has anything to add, please send it to him.

DRAFT

B. Landscape Committee

Mr. Brall advised that there was no report as they wait for the new vendor to begin work.

C. Newsletter Supervisor

Mr. Fisher advised that the newsletter would be released the following the IA meeting.

D. Finance Supervisor

There was no report.

E. Lakes and Roads Supervisor

Mr. Ball updated the Board on the progress of the ongoing lake project. He advised that the drainage for Lake A1 and A2 is not where the vendor would like it to be at this time and that they will modify it at no cost. An engineer will be conducting a long-term study on the area. When asked about a potential completion date for the project, Mr. Ball estimated one month.

Solitude is getting more aggressive with the algae treatment due to the presence of some small algae blooms. Some lake debris has been identified and Mr. Ball advised that he is waiting for a proposal from Solitude for removal. Mr. Ball also shared that Mr. Fowler will start checking for diluted oxygen in the lakes. He advised that Solitude will provide ideas for aeration to improve the overall health of the lakes.

F. Maintenance Supervisor

Mr. Burke advised that he spoke to Hoover about replacing a butterfly valve on a PRV behind 1813 Coconut and that he was currently waiting on an estimate.

Mr. Burke then spoke about a problem that occurred with the pool the previous week. He advised that the pool maintenance company's new technician mistakenly dropped the water levels of the pool. The technician also did not close the valve. Mr. Burke advised that it took thirty-six hours to get the pool's water level back up due to the error of the technician. He informed the Board that there would be no bill for the month of August due to the error. A different technician was requested for future service. Mr. Burke also mentioned an issue with the breaker panel to the Board, noting chewed wires.

G. Facilities Supervisor

Mr. SanAntonio spoke to the Board about two gate strikes that recently occurred. He advised that he has a police report for the second strike. The possibility of adding speed bumps before the gate was raised briefly.

H. HOA Updates

Mr. SanAntonio advised that there would be no HOA meeting in August. The next meeting for the Master HOA will be September 17, 2024.

I. Commercial Properties

DRAFT

There were no updates for commercial properties.

J. Community Emergency Response Team (CERT)
There were no updates.

NINETEENTH ORDER OF BUSINESS Public Comments

Mr. O'Neal followed up about his concerns regarding the status of the appeal from FEMA and whether the taxes were up to date for the golf course property. The Board answered that the FEMA appeal was still pending and that the taxes are up to date for the golf course property. Ms. Blandon advised the Resident that appeals are taking a year to a year-and-a-half. Mr. O'Neal then expressed dissatisfaction with the quality of LMP's work behind his property. The Board acknowledged the issues with LMP's workmanship and reiterated that a new vendor was taking over. Ms. Blandon advised the Resident that the new vendor would be taking over effective October 1, 2024.

Mr. Taylor asked about the budget that was adopted during the meeting. He asked how the assessment would impact him. Ms. Blandon answered that the assessments are not new but confirmed that the Resident's taxes would be going up. She stated that there was a letter that went out that detail the assessments, but that copies of the budget were available at the meeting if needed.

A Fairway Commons Resident expressed concerns about her limited visibility of the lake from her property. She was informed by the Board of the appropriate meeting to attend to address that concern.

There were no additional public comments.

TWENTIETH ORDER OF BUSINESS Supervisor Requests

Ms. Blandon asked if there were any Supervisor requests or comments. There were no Supervisor requests or comments.

TWENTY-FIRST ORDER OF BUSINESS Adjournment

Ms. Blandon stated that there was no further business to come before the Board and asked for a motion to adjourn.

On a Motion by Mr. Brall, seconded by Mr. Ball, with all in favor the Board adjourned the meeting at 4:02 p.m., for the Bobcat Trail Community Development District.

_____ _____
Secretary/Assistant Secretary Chairman/Vice Chairman

DRAFT

Tab 2

MINUTES OF INFRASTRUCTURE/ASSET WORKSHOP

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

The workshop of the Infrastructure/Asset Committee of the Bobcat Trail Community Development District was held on **Thursday, September 19, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

Jeffrey Brall	**Board Supervisor, Chair**
Richard Burke	**Board Supervisor, Vice Chair**
Steven Ball	**Board Supervisor, Assistant Secretary**
Michael SanAntonio	**Board Supervisor, Assistant Secretary – VIA PHONE**

Call to Order:

Meeting was called to order at 3:00pm by Jeff Brall

Pledge of Allegiance

The Board voted to allow Mike San Antonio to be part of the quorum via a phone call. Present were Jeff Brall, Steve Ball, Dick Burke, Mike San Antonio. Paul Fisher was not present.

Approval of Minutes - Added to agenda under New Business was “C”-Review potential port-a -potty for Artistry, and “D”-discussion of Farmer’s Market request. The agenda was then approved as amended.

Public Comments - None

Old Business

a. Due to the number of “gate hits” we are looking to move forward with speed bumps at the front exit gates.
b. Review of the sidewalk project with the Master HOA. The Board is looking to approve the CDD portion of that budget at next meeting.
c. Roads update. Supervisor Ball updated Board to the next phases. They are within budget.

New Business

a. The Board discussed changes to the 3 small monuments.
b. CDD communication process. Discussion ensued about whether or not CDD supervisors should be on social media responding to issues.

DRAFT

c. Discussion regarding an area for a port-a-potty for Artistry.
d. Discussion of potential use of CDD property by Farmers Market

8. Resident concerns- None at this time.

9. Supervisor updates and comments-Supervisor Burke advised that two PRVs were being repaired at that time.

10. Public Comments - Regarding Farmer's Market

11. Adjournment at 3:42pm

DRAFT

Tab 3

Bobcat Trail Landscape Committee Meeting Minutes
Tuesday August 20, 2024
Bobcat Trail Community Center
1352 Bobcat Trail Boulevard
North Port Florida 34288

1. Call to Order

The meeting was called to order at 1 PM.

2. Roll Call/Statement of Quorum

Present for the meeting were Jeff Brall, Laura Filler, Val Duemmel, and Bill Hadovski. LMP did not provide a representative at the meeting and there were no residents or members from the general public.

3. Approval/Adoption of Agenda

The August 20, 2024, Bobcat Trail Landscape Committee Meeting Agenda was approved as modified. (See Attachment 1).

4. Public Comment on Agenda Items

There was no public comment.

5. Meeting Minute Approval

During the reporting period the BCTLC met three additional times. The 7-16-24 BCTLC Meeting Minutes were approved as written, the 7-22-24 BCTLC RFP Continuation Meeting Minutes were approved as written, the 7-25-24 BCTLC RFP Continuation Meeting Minutes were approved as written and the 7-30-24 BCTLC Meeting Minutes were revised on page 2 paragraph 3 to better explain problem being detailed. The 7-30-24 BCTLC RFP Continuation Meeting Minutes were then approved as modified.

6. Old Business

A. Sergio's Punch List

(1) Plant Replacement- LMP continues to push this commitment off. Currently they are predicting that the plants will be installed by the end of September. It was determined that this was not acceptable as it was also the end of the LMP/ BCT CDD Landscape contract. If LMP fails to produce the plants the BCTLC would have no recourse. It was decided that LMP would be contacted and told that if the plants were not installed by September 1, 2024, that the BCT CDD would cancel the order and subtract the cost of the plants from the funds BCT CDD currently owes LMP. The costs would be based on the item cost listed in the IAN Plant Replacement Project (Attachment 2).

(2) Weed Control.

(3) Ligustrum.

(4) Jatropha's (2).

(5) Yellow Hibiscus (3).

(6) The consistency of trimming shrubs, some are tall some short, seems to depend on where and who?

(7) Trash removal.

(8) Failing False Agave Plant at back gate.

(9) The Corner of Bobcat Trail and Royal Palm Dr (Southeast Corner), (Attachment 4) email with pictures details the condition of CDD property and abutting homeowner property turf. Included with the pictures is an explanation of the effort expended by homeowner trying to get LMP to remedy the problem, the original requests to LMP dated from May of 2024. There has been some verbal acknowledgement of the problem by LMP but to date there has been no action and the problem continues to spread on homeowner's and CDD property.

(10)Miscellaneous items

- Saw Palmetto commercial side exit needs attention.
- Leather Palm (back) Royal and Coconut needs attention.
- 3 Jatropha overgrown with other plants.

B. Street Monuments, weeds still evident among plants in and around monument beds.

C. Bobcat Trails Village (Commercial Side) Landscape Status.

(1) August 20, 2024, Status of the Commercial Side Landscape, detailed in (Attachment 3) was provided and discussed at the meeting.

(2) As a general comment the most significant issue on the Commercial Side is the turf, weeds, brown spots, bare spots are common through out the area, it is felt this should be one of the highest priorities on the commercial side.

At this point in the meeting it was felt by the Committee that without LMP present there was little value in having a detailed discussion on the items noted in section A, B and C above. As no commitments or explanations would be available. It was concluded that what's needed is a "Gap Analysis" done between where LMP leaves off and the contract scope Artistree was assuming. It was noted that Artistree may incur additional costs outside their proposed scope to bring the community in line with the RFP scope. It was concluded that a meeting should be scheduled with Artistree as soon as possible to start working on this issue. The Committee Secretary took the action item to prepare a list of tasks that Artistree would be expected to assume.

D. Other open Landscape Items

(1) Woodhaven Street needs a "Champion" to ensure the contracted landscape work is properly done. The area looked good after the Ian cleanup but has become overgrown again.

(2) "Under The Tree's" also needs a "Champion".

(3) Commercial Side behind Doctors office. Significant effort will be required to push vegetation back, and clear enough space to safely get landscape equipment back around the pond.

(4) It was noted that Artistree had agreed to continue cutting the golf course areas that LMP currently cuts, most of these are along Bobcat Trail. The detail of this effort needs to be confirmed with Artistree.

E. Jeff B. Various Items

(1) There was general discussion of the status of LMP payments. We are currently holding back May and June maintenance payments. The unanswered question is should we also withhold August maintenance payments as well. It was pointed out that there are several palm trees that per our contract should have been trimmed but were not, the cost of the "Plant Replacement" plus, the increased Artistree costs related to doing the work LMP will not complete prior to the end of the LMP contract.

7. Landscape Lighting

(1) Lighting is still out in places due to GFI's tripping propbly because of the irrigation system. Commercial Landscape Lighting (Mark Curtain) has committed to come out and have a look.

(2) There has been a new GFI installed on the exit side monument.

(3) On the entrance side we have two tripped GFI's. They have been added to the list of things Kennedy Electric will look at on their next visit.

(4) The sign in the median strip directly across from the Community Center is in the process of being lit up.

8. Five Year Plan

Refer to (Attachment 1) for the details of the current 5-year plan.

A. Proposed changes/modifications to the 5-year plan.

(1) Provide Landscape lighting to the monuments and surrounding landscape on the Back Entrance.

(2) It was proposed that all the street monuments be lit up. Concern was expressed about how we would get electricity to these monuments. Though in most cases electrical power is nearby (streetlights) it would have to be routed under the sidewalk which could be a major cost and possible sidewalk issue. It was suggested that in cases where power would be difficult to route to the monument that Solar Powered Landscape Lighting be used. It was felt that this was a good solution. One concern expressed is to who owns the lights, is it Maintenance groups issue or Landscape issue.

(3) The community plant sale would now fall under Artistree and should be discussed with them at the first opportunity.

(4) Make number 4 (*Mulch/Sod Enhancement Project*) a Shoval Ready Project (SRP). The purpose of this project is to use sod to hold mulch in place so that it is not washed over the sidewalks and away from the beds. This project has the potential to save some costs and enhance the appearance of Bobcat Community. Try to have this project ready to start by October.

(5) Combine # 1 (Remediate Water Overflow/Washed out Area/Trim Shrubs Lower/Add Sod Where Needed) and # 10 (Redesign Pool Area Plantings/Add Palms) into one (SRP). To accomplish this the pool redesign will have to be completed.

(6) Item 8 (*Complete Phase 5*) involves upgrading the remainder of the commercial side landscaping. As this is a very large project it was decided to break it into parts with the first part being the design phase.

B. Revised Five Year Plan

(1) Redesign Pool Area Plantings/Add Palm Trees and Remediate Water Overflow Wash out out of Pool Area/Trim Shrubs Lower/Add Sod Where Needed. SRP

(2) Irrigate and Sod Additional Area "F"/Redesign Layout of Space/Add Shady Lady Trees. Note: There are still open issues with this item. When the golf course is operational this area is irrigated by the golf course. Questions exist as to whether we should pay to upgrade the irrigation or wait until the golf course is operational.

(3) Community Center Road Entrance Side Redesign (Where Pine Trees were Removed.)

(4) Mulch/Sod Enhancement Project. SRP

(5) Improve front Entrance/Exit Monuments Esthetically

- Trim Shrubs Lower/Flower Bed Redesign

(6) Redesign and replant Landscape Bed in front of Guard House. SRP

(7) Improve Street Monuments Esthetically.

- Possible New Color Scheme
- Trim Shrubs Lower
- Reconfigure Shrubs and Plants

(8) Annual Plant Sale. (Need to Check with Artistree)

(9) Complete design for Phase 5

(10)Add park benches along Bobcat Trail.

Note: For a project to be Shovel Ready (SRP) it must have all design work complete and documented, plus it must have a current active quote associated with completing the task.

9. Budget

A. No new issues to discuss on the Budget.

10.New Business

A. It was reported and discussed at the meeting that all participating vendors who submitted proposals in the recent RFP process for Bobcat Trail Landscape Services had been notified of the RFP results in writing (see attachment 9) except for LMP who was at the selection meeting and was notified in person.

B. New Contract FY 2025- 2027 The BCTLC Yearly Contract Schedule Grid has been cleaned up and made more user friendly. (See Attachment 10) Going forward this grid will be the basis of our Landscape Maintenance Contract implementation.

C. Working with Artistree to develop a disaster recovery rate to be set for post storm cleanup and recovery.

D. Supporting the CDD Lawyer to work out the correct wording for the new landscape contract. Effort is taking several iterations.

E. Establishing a meeting schedule for the BCTLC and the Artistree Bobcat Team.

F. Met with Jay Grimaldi who is Sunrise/Artistree Business Development Manager.

11.Property inspection with John Fowler of Rizzetta

A. To facilitate the initial property inspection by Rizzetta's John Fowler the Bobcat Trail Landscape Committee provided the following documents via email dated August 13, 2024, Laura Filler to John Fowler, Scott Brizendine and Belinda Blandon. (See attachment 5) The following documents were provided – Ian Plant Replacement Project (Attachment 2) and The Landscape and Irrigation Maintenance Service Request for Proposal, Bobcat Trail Development District North Port Florida. (See Attachment 6), Attachment 7 is an email Laura Filler to

John Fowler (Rizzetta) with the BCTLC and Scott Brizendine on copy. The email provides a copy of the IAN Plant Replacement Project (Attachment 2) and a copy of the current Landscape and Irrigation Maintenance Agreement between Bobcat Trail Community Development District and Landscape Maintenance Professionals Inc. (LMP) refer to (Attachment 8).

B. John Fowler will do a monthly inspection and report of the property, his focus will be on Lakes and Roads, but he will also be observing and commenting on landscape issues. The report will be available via the CDD WEB site.

C. Rizzetta will not police the Landscaper or deal directly with the Landscaper, that will still be the responsibility of the BCTLC.

D. Rizzetta will serve as another set of eyes and bring additional attention to issues related to the performance of the landscape contractor. Rizzetta has found that this arrangement works well at keeping the Landscaper on his toes.

E. Belinda Blandon is the Rizzetta District Manager and John Fowler works with her on the Bobcat Trail CDD contract.

F. Artistree committed to attending the CDD meeting.

12. Public Comment

No public or residents in attendance, not public comment.

13. Adjourn

Meeting adjourned at 3:05 PM,

ATTACHMENTS

1. Modified and approved Agenda for the August 20, 2024, Bob Cat Trail Landscape Committee Meeting.
2. "IAN Plant Replacement Project"
3. Bobcat Trails Village Commercial Side Landscape Status August 20, 2024.
4. Email attachment, with pictures and text detailing turf problems at Bobcat Trail and Royal Palm Drive.
5. EMAIL dated 8/13/24 Transmitting Documents to Rizzetta
6. Landscape and Irrigation Maintenance Services Request for Proposals, Bobcat Trail Community Development District North Port Florida.
7. Email Dated August 13, 2024, Laura Filler to John Fowler Transmitting Documents.
8. LMP /BCT CDD current Landscape and Irrigation Service Agreement.
9. Notification email to unsuccessful vendors in BCT CDD Landscape Maintenance RFP
10. BCTLC YEARLY CONTRACT SCHEDULE GRID

ATTACHMENT 1

Bobcat Trail Landscape Committee
8/20//2024 BCT Community Center 1 PM
AGENDA (revise as needed at meeting)

1. Call to Order
2. Roll Call/Statement of Quorum
3. Approval/Adoption of Agenda
4. Public Comment on Agenda Items
5. Reading/Approval of 7/16/24 Meeting Minutes

Old Business:

6A. Sergio's Punchlist (Laura)

- Plant Replacements Status
- Weed Control
- Ligustrum
- Jatropha's (2)
- Yellow Hibiscus (3)
- Consistency of Trimming Shrubs
- Trash Removal
- Failing False Agave at back Gate ← • MISCELLANEOUS

6B. Street Monuments (Valarie)

6C. Commercial/Woodhaven/"Under. The Trees" (Bill H.)

- Debris Behind Entrance/Exit Monuments
- Bottle Brush Tree Trimming
- Crepe Myrtle Near Apartments
- Failing Magnolia Tree
- Oaks Trimmed?
- Palm on Ease Side and North End of Bobcat Village Center Road
- Sidewalk on East Side of Street Needs to be Better Trimmed

- 6D. Miscellaneous (Jeff)
- Access to Lake Behind Hospital
- Area From Heliport to Lake
- Lake Behind Doctor's Office/Pepper Trees

7. Landscape Lighting

8. 5 Year Plan -

- 2 Shovel Ready Projects

1. Pool Area
2. ~~Phase 5~~ LANDSCAPE BED IN FRONT OF GUARD HOUSE

- Park Bench Project (Bill H)
- Plant Sale (Val)

{5 Year Plan -

1.Remediate Water Overflow/Washout of Pool Area/Trim Shrubs Lower/Add Sod Where Needed
2. Irrigate & Sod Additional Area "F"/Redesign Layout of Space/Add Shady Lady Trees
3. Community Center Road Entrance Side Redesign (where Pine Trees were removed)
4. Mulch/Sod Enhancement Project
5.Improve Front Entrance/Exit Monuments Esthetically
- *Trim Shrubs Lower/Flower Bed Redesign*
- *Redesign Landscape Bed in Front of Guard House*

6. Improve Street Monuments Esthetically
Possible Color Scheme Change/Trim Shrubs Lower/Reconfigure Shrubs/Plants
7. Annual Plant Sale (LMP provides for Residents)
8. Complete Phase 5 (Commercial Side)
9. Add Benches Along BCT
10. Redesign Pool Area Plantings/Add Palms }

9. Budget

NEW BUSINESS

10. New Contract FY 2025-2027

11. RIDE AROUND WITH JOHN FOWLER (RIZZETTO)

12. ~~11.~~ Public Comment

13. ~~12.~~ Adjourn

ATTACHMENT 2

"Ian Plant Replacement Project"

Location/Plant Count	Cost
Ctr Median Bed Front Entrance -	
9 Curly Leaf Mammy Crotons ($18.00)	$ 162.00
3 Redhot Hibiscus ($20.75)	62.25
3 Silver Buttonwood ($24.75)	74.25
7 Blue Daze ($12.50)	87.50
	$ 386.00
Entire Front Exit Bed -	
Sod replacement (800 x 1.50)	1,200.00
25 Liriope ($8.00)	200.00
5 Gold Mound ($23.50)	117.50
7 Curly Leaf Mammy Croton ($18.00)	126.00
3 Fakahatchee Grass ($22.00)	66.00
3 Fire Bush ($23.50)	70.50
Move rock where hole is from Magnolia	0.00
	$1,780.00
Entire Front Entrance Bed -	
Sod Replacement (800 x 1.50)	1,200.00
28 Liriope ($8.00)	224.00
2 Fakahatchee Grass ($22.00)	44.00
3 Fire Bush (23.50)	70.50
4 Redhot Hibiscus ($20.75)	83.00
Replant Society Garlic	0.00
Crape Myrtle ($178.75)	178.75
	$1,800.25
Single Pygmy Palm Entrance Side -	
Pygmy Palm ($550.00)	$550.00
Sidewalk Area After Guard House -	
6 Sable Palms ($371.25)	2,227.50
Bed Behind Guard House -	
14 Curly Leaf Mammy Crotons ($18.00)	252.00
3 Redhot Hibiscus ($20.75)	62.25
3 Orange Dwarf Ixora ($18.00)	54.00
7 Liriope ($8.00)	56.00
2 Ligustrum ($687.50)	1,375.00
	$1,799.25

Median Beginning @ Royal & Silver -	
Transplant Liriope	0.00
1 Orange Dwarf Ixora ($18.00)	18.00
1 Redhot Hibiscus ($20.75)	20.75
12 Mammy Crotons ($18.00)	216.00
	$254.75
Existing Median Island #2 -	
5 Carissa ($18.00)	$ 90.00
Bullnose After Island #2 -	
2 Carissa ($18.00)	36.00
1 Mammy Croton ($18.00)	18.00
	$ 54.00
Solitary Palm Cir -	
15 Liriope ($8.00) pending a soil sample	$120.00
Bullnose Across From Phoenix -	
8 Liriope ($8.00)	64.00
7 Mammy Crotons ($18.00)	126.00
	$190.00
Large Area on Blvd Median - we lost many Washingtonians -	
5 Sylvester Palms placed 57' apart	$35,750.00
Blvd Median After Phoenix (before Canary palm island)	
1 Triple Foxtail	1,443.75
Blvd Median Area (before where Large Oak was removed)	
1 Triple Foxtail	1,443.75
Large Oak location Bullnose and Turnoff To C/C -	
1 Triple Foxtail (1,072.50) & Enlarge Bed ($0.00)	1,443.75
Add 3 boulders from commercial side	0.00
5 Green Island Ficus ($18.00)	90.00
5 Curly Mammy Crotons ($18.00)	90.00
	$1,623.75

Last Median Bed After Road Narrows/Across From G/C Work Area -	
1 Red Jathropha ($235.50) & Enlarge Bed ($0.00)	235.50
Add 3 Lg Rocks from back gate area	0.00
7 Curly Mammy Crotons ($18.00)	126.00
7 Green Island Ficus (($18.00)	126.00
	$487.50
Last Median Bed w/ CC Address Sign -	
1Green Island Ficus ($18.00)	18.00
1 Mammy Croton ($18.00)	18.00
	$36.00
Community Center Entrance Left Side -	
Replace 4 Dead Magnolia's with 3 to match Rt Side ($1787.50)	5,362.50
60 Orange Dwarf Ixora ($18.00)	1,080.00
	$6,442.50
Community Center Entrance Right Side -	
60 Orange Dwarf Ixora ($18.00)	1,080.00
3 Dk Pink Dwarf Bouganveilla ($23.50)	70.50
	$1,150.50
Community Center Far Right Bed -	
6 Liriope (owed to us by LMP)	$0.00
Community Center Entrance Median -	
Remove Redhot Hibiscus	0.00
3 Orange Dwarf Ixora ($20.75)	62.25
6 Liriope ($8.00)	48.00
	$110.25
BCT Blvd Dead Oak Trees Near Black Fence - Area #1	
Replace Oaks Between Royal & Kentia with 2 Shady Lady Trees ($442.75).	$885.50
BCT Blvd Dead Oak Trees Near Black Fence - Area #2	
Replace Oaks After Kentia with 4 Shady Lady Trees ($442.75)	$1,771.00
Total of 1st 3 pages (includes $2400 sod)	(60,796.25)

General/Monument Plant Replacement

The Estates (Silver & BCT)	
2 Red Jathropha ($235.50)	471.00
6 Curly Leaf Mammy Croton ($18.00)	108.00
6 Liriope ($8.00)	48.00
6 Blue Daze ($12.50)	75.00
	$702.00
The Gardens (Phoenix & BCT) -	
1 Shady Lady ($442.75)	442.75
8 Curly Mammy Crotons ($18.00)	144.00
4 Liarope ($8.00)	32.00
	$618.75
The Sanctuary Palmetto Palm Way -	
Hard cut 2 Arbicola	$0.00
The Sanctuary Royal Palm -	
3 Cat Palms ($385.00)	1,155.00
4 Curly Mammy Crotons ($18.00)	72.00
5 Liriope ($8.00)	40.00
	$1,267.00
Kentia Palm (Mr. Pucci's House)	
7 Liriope ($8.00)	$56.00
Kentia Palm (Back Gate Side)	
5 Liriope ($8.00)	$40.00
Bailey Palm (Toledo Side)	
3 Cat Palms ($385.00)	1,155.00
5 Liriope ($8.00)	40.00
	$1,195.00
Bailey Palm (Back Gate Side)	
3 Cat Palms ($385.00)	1,155.00
5 Liriope ($8.00)	40.00
	$1,195.00
Palmetto Palm (Toledo/Queen Palm Side)	
7 Lairope ($8.00)	$56.00

Palmetto Palm (Back Gate/Queen Palm Side)	
5 Lairope ($8.00)	40.00
2 Arbicola ($18.00)	36.00
3 Cat Palms ($385.00)	1,155.00
	$1,231.00
Palmetto Palm (Back Gate/GC Side)	
5 Liriope ($8.00)	$40.00
Palmetto Palm With BROKEN MONUMENT TOP	
5 Liriope ($8.00)	40.00
3 Cat Palms ($385.00)	1,155.00
	$ 1,195.00
Coconut Palm Monument	
5 Cat Palms ($385.00)	1,155.00
6 Curly Mammy Crotons ($18.00)	108.00
5 Liriope ($8.00)	40.00
	$ 1,303.00
Back Gate Island Bed	
10 Red Hot Hibiscus ($20.75)	207.50
1 Lairope ($8.00)	8.00
	$ 215.50
Back Camera Bed	
3 Arbicola ($18.00)	$54.00
Back Gate (Outside of Fence)	
2 False Agave ($316.25)	632.50
25 Dk Pink Dwarf Bouganveilla's ($23.50) ***Pending soil sample	587.50
	$ 1,220.00
Queen Palm (Dunn House Side)	
2 Cat Palms (385.00)	770.00
11 Liriope ($8.00)	88.00
	$858.00
Queen Palm (BCT Side)	
3 Cat Palms ($385.00)	1,155.00
6 Curly Mammy Crotons ($18.00)	108.00
7 Liriope ($8.00)	56.00
	$1,319.00

Total of last 3 pages	($12,565.25)

pages 1-3 total	$ 60,796.25
pages 4-6 total	12,565.25
	(73,361.25)
(Estimate # 82941) Syl Palm Delivery Fee	605.00
(Estimate # 82941) Foxtail/Shady Lady Delivery Fee	907.50
(Estimate # 82941) Machine Rental Fee	3,300.00
(Estimate # 82941) Syl Palm Injections	1,017.50
(Estimate # 82941) Irrigation Adjustments	2,200.00
(Estimate #82947) Grade A Dark Brown Shredded Cypress	1,236.00
(Estimate # 82947) Irrigation Adjustments	550.00
(Estimate # 82947) Soil	66.00
(Estimate # 82941) Syl Palm Injections	1,017.50
	(10,899.50)
Bottom Line	**$ 84,260.75**

ATTACHMENT 3

Bobcat Trails Village Commercial Side

Landscape Status

August 20, 2024

General Comment

Turf is in trouble throughout the area, lots of bare spots, lots of areas that have only weeds. spots that have turf also have significant weeds growing amongst them, I have seen this problem throughout Bobcat Village, not just the commercial side.

Bob Cat Trail West Monuments

1. Behind the exit monument the grass has been planted and it looks good but thin, does not look like it was cut on the last cycle (Yesterday?) Some bare spots due to left over grass clumps from previous mowing,
2. New xora plants need to be trimmed and shaped.
3. Grass around front monuments seem to be cut to two different levels?
4. Grass behind entrance monument looks good, some tall weeds at the base of monument (back).
5. Same water bottle, lying in same place behind entrance monument for last 6 weeks.
6. The Agave Plant in the Center Median is looking much healthier, still seems crowded in amongst the landscape boulders, but does look okay to me, need others to weigh in. Evidence of chemical weed control but not effective.
7. Trash, around entrance monument, counted sixteen bottles, grass was cut yesterday??

Bobcat Village Center Road South

8. Brown spots and weeds, along sidewalk and in median strip. needs attention.
9. Trash
10. Center medium Bottle Brush tree could use some trim and TLC
11. The center Island has a tree/bush that needs attention, upper half is dead.

Bob cat Village Center Road North

12. Median grass has weeds and bare spots.
13. Evidence of chemical weed control but not effective.
14. Many suckers on trees need to be trimmed.
15. Most beds or tree bases have poor or nonexistent soft edges.
16. Sidewalk by gas station is almost one half overgrown with brush and weeds, does not have the required vertical clearance.
17. Fire hydrant by gas station cover in weed hard to see from the road.
18. Lots of trash by sidewalk near gas station.

Behind Hospital (Not clear on scope)

19. Looks okay, one culvert is a little overgrown but also almost submerged hard to reach.
20. Pond is being overtaken by weeds and aquatic growth, should someone from the CDD Roads and lakes take some action?

Behind Doctors Office

21. The border between pond and pepper tree growth needs to be widened and pepper trees pushed farther back. A major problem south end of pond has barely three feet of clearance, the south end of pond needs major effort.

Toledo Blade Sidewalk South

22. Some brush just beginning to encroach, vertical clearance at lower limit in some areas.

Toledo Blade Sidewalk North

23. Some brush just beginning to encroach, vertical clearance at lower limit in some areas.

ATTACHMENT 4

All,

I have attached some pictures taken this AM in front of my house. Half the property is mine and the rest is CDD. It ranges from my property line to the area behind the monument on the south east corner of Royal and Bob Cat. I also have a picture of the monument on Bobcat and Royal. It is the first monument many people see as they enter our community. There is also a picture of the side yard by my house that is part mine and part CDD. When I moved in all these areas had a thick acceptable (not great) lawn. I have three work requests into LMP since early May. Nothing but some verbal responses from LMP, the results speak for them selves.

I personally believe the condition of the turf through out Bobcat Trails is the biggest challenge we face in keeping our community looking like the resident expect and pay for.

Bill H





Sent from my iPad

ATTACHMENT 5

Laura Filler
Requested Documents
Aug 13, 2024 at 6:10:58 PM
John Fowler
Scott Brizendine Bill Hadovski
Jeffrey Brall
Valerie Duemmel BBlandon@rizzetta.com

John, Scott, & Belinda,
Please see attached documents per prior conversation today.
Thank you,
Laura

pdf pdf

LANDSCAPE AND IRRIGATION MAINTENANCE SERVICES REQUEST FOR PROPOSALS BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT NORTH PORT, FLORIDA

Section A

Bobcat Trail Community Development District (the "District") is a residential community located in the City of North Port, Sarasota County, Florida. The community is located on Toledo Blade Boulevard, minutes from Interstate 75 and 20 miles south of Sarasota. Bobcat Trail is a gated residential community of 447 single family homes and 110 villas.

The District's Board of Supervisors oversees the maintenance of the common properties within Bobcat Trail. The District's infrastructure in Bobcat Trail includes major roadways and drainage, surface water management systems, irrigation lines, common land and recreational facilities.

Notice is hereby given that the District will accept proposals ("Proposal") from qualified entities ("Proposers") interested in providing landscape and irrigation maintenance services, all as more specifically set forth in this Request for Proposals ("RFP"). This RFP, including, but not limited to, contract documents, project scope, and other specifications, is available at the District's Office in the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, FL 34288 or on the CDD Website. Office hours are Monday - Friday from 9 a.m. until 3 p.m.

Section B

The purpose of this RFP is to solicit proposals from various entities, conduct a fair and extensive evaluation based on the criteria herein, and select the Proposer who best meets the District's needs. The awarded contract will be for a three (3) year contract with no price increase during that time period with the following provisions for early termination:

- Thirty (30) days written notice will be by certified mail from the District, with or without cause, in its sole and absolute discretion, whether reasonable or not.
- Ninety (90) days written notice by certified mail from the Contractor, with the same conditions.
- The District and Contractor may mutually, in writing, extend the contract on a year-to-year basis without the District issuing another RFP. Any written extension to the contract shall specify the compensation to be paid by the District to the Contractor for the extension term.

Section C

The Pre-Proposal Meeting will be held at the above mentioned District office at **10:00 a.m. on June 24, 2024**. The intent of this meeting is to answer any questions regarding all aspects of this contracted service, review maps of the

involved District property for necessary familiarity and specific site visits as warranted. The Proposer, by and through submission of a Proposal, agrees that it shall be held responsible for having heretofore examined the property site, the location of all proposed work, and all other physical characteristics of the work.

The Proposer agrees to accept the site in an "as is" condition, and hold its prices for the period set forth.

Section D

In order to submit a Proposal, a Proposer must meet the following qualifications: (1) be authorized to do business in the State of Florida; (2) hold all required local/ county/state and federal licenses in good standing; and (3) must have at least five (5) years of experience as a landscape maintenance contractor. By submitting a Proposal, the Proposer is assumed to be familiar with all federal, state, and local laws, ordinances, rules and regulations that in any manner may affect the work. The District reserves the right in its sole discretion to make changes to this RFP up until the time of the Proposal Opening, and to provide notice of such changes only to those Proposers who have attended the Pre-Proposal Meeting or otherwise notified the District in writing of intent to submit a Proposal.

Section E

Entities desiring to provide services for this project must submit one (1) original and (1) electronic copy (PDF format on a USS flash drive) of its Proposal, including all required documents, no later than **3:00 p.m. on July 15, 2024,** at the fore mentioned District office. Proposals shall be submitted in a sealed package, shall bear the name of the Proposer on the outside of the package and shall clearly identify the project. Proposals mailed must be by certified mail. Any Proposal not completed as specified or missing required documents may be disqualified. Proposals received after the time and date stipulated above will be returned unopened to the Proposer. All Proposals must be signed by an official agent or representative of the Proposer.

Section F

If a Proposer must outsource or sub-contract any work to meet the requirements of this RFP, this must be clearly stated in the Proposal. Additionally, all costs included in the Proposal must be all-inclusive to include any outsourced or sub-contracted work. Any Proposal which calls for outsourcing or sub-contracting work must include the name of the sub-contractor and a description of the intended sub-contract work. Sub-contractors must also meet the minimum required insurance coverage.

Section G

Rankings will be made based on the Evaluation Criteria contained within the RFP. Cost will be one factor used in determining the Proposal that is in the best interests of the District, but, the District explicitly reserves the right to make the contract award to other than the lowest priced Proposal. The District has the right to reject any and all Proposals and waive any technical errors, informalities, or irregularities if it determines in its discretion it is in the best interest of the District to do so.

Section H

All Proposals will be publicly opened at a meeting of the Landscape Committee on **July 16, 2024, at 1:00 p.m.** at the fore mentioned District Office, stating Proposer's name and total pricing. No decision will be made at that time. The Landscape Committee may at a time of their choosing further inspect Proposal provisions, possibly hold interviews with perspective Proposers, and submit their recommendations to the District's Board of Supervisors at the Board's meeting on **August 15, 2024, at 3:00 p.m.**

Said meetings are open to the public and will be conducted in accordance with the provisions of Florida law. Said meetings may be continued in progress without additional notice to a time, date, and location stated on the record.

Section I

Public Records: The Proposer understands and agrees that all documents of any kind provided to the District in connection with this Proposal may be public records under Chapter 119, Florida Statutes and shall be treated as such in accordance with Florida Law.

Section J

Interpretations and Addenda. All questions about the meaning or intent of the RFP are to be directed in writing, via e-mail only, to Jeff Brall, CDD Supervisor at info@bobcatcdd.com Interpretations or clarifications considered necessary in response to such questions will be issued by Addenda to all parties recorded as having received the RFP.
Questions received after **4:00 p.m., June 28, 2024** will not be answered. Answers to all questions will be provided to all proposers by e-mail by **3:00 p.m., July 2, 2024.** Only questions answered by formal written Addenda will be binding. No interpretations will be given verbally. No inquiries will be accepted from subcontractors; the Proposer shall be responsible for all queries.

Section K

Modification and Withdrawal. Proposals may be modified or withdrawn by an appropriate document duly executed and delivered to the place where Proposals are to be submitted at any time prior to the time and date the Proposals are due. No proposal may be withdrawn after the Proposal due date for a period of ninety (90) days.

Section L

Protests. Any protest regarding Proposal rejection, or a Proposal award, or the RFP must be filed in writing, within seventy-two (72) hours after the receipt of the notice of the District's decision or the issuance of the RFP, as applicable, and must be filed at the District's offices as set forth herein, Attention: Jeff Brall, CDD Supervisor. The formal protest setting forth with particularity the facts and law upon which the protest is based shall be filed within seven (7) calendar days after the initial notice of protest was filed. Failure to timely file a notice of protest or failure to timely file a formal written protest shall constitute a waiver of any right to object or protest.

Section M

Black-Out Period/Code of Silence. The black-out period is defined as between the time the Request for Proposals is issued by the District and the time the Board awards the contract. During this black-out period, any attempt to influence the thinking of District staff or officials related to this RFP, in person, by mail, by facsimile, by telephone, by electronic mail, or by any other means of communication, may result in disqualification

of their award and/or contract. This does not apply to pre-proposal conferences, contract negotiations, or communications with staff not concerning this solicitation.

Section N

Proposal Forms: All blanks on the Proposal forms must be completed in ink or typewritten.

- A completed and executed Affidavit of Acknowledgments.
- A completed and executed Proposal form.
- A listing of the position/title and responsibilities of key management or supervisory personnel of Proposer, including experience.
- Description of Proposer's proposed staffing levels.
- Information related to other projects of similar size and scope for which the Proposer has provided or is providing landscape and irrigation maintenance services.
- At least three (3) references from projects of similar size and scope.
- Completed Proposal pricing. Unit costs for mulch, annuals, and trimming of palms above 15' should be provided and included in the contract pricing
- Insurance: Proposer should include a current Certificate of Insurance, or equivalent information as called for in the RFP to meet the insurance coverage requirements. Proposer may offer additional insurance, or less insurance, and such modifications may be taken into account in the scoring of the Proposal.

AFFIDAVIT OF ACKNOWLEDGMENTS

STATE OF _____

COUNTY OF _____

Before me, this undersigned authority, appeared the affiant,_____, and having taken an oath, affiant, based on personal knowledge, disposes and states:

1. I assisted with the preparation of, and have reviewed, the Proposer's proposal (**"Proposal"**) provided in response to the Bobcat Trail Community Development District's (**"District"**) request for proposals for landscape and irrigation maintenance Services. All of the information provided therein is full and complete, and truthful and accurate. I understand that intentional inclusion of false, deceptive or fraudulent statements, or the intentional failure to include full and complete answers, may constitute fraud; and, that the District may consider such action on the part of the Proposer to constitute good cause fro rejection of the proposal.
2. Under penalties of perjury under the laws of the State of Florida, I declare that I have read the foregoing Proposal and al I of the questions are fully and completely answered, and all of the information provided is true and correct.

Dated this _____ day of _____2024.

Proposer:_____

By: _____

Title: _____

STATE OF_____

COUNTY OF _____

The foregoing instrument was acknowledge and before me this _____day of

_____, 2024 by_____of _____

who is personally known to me or who has produced _____ as identification and did ( ) or did not ( ) take the oath.

_____

Notary Public, State of Florida

Print Name._____

Commission No._____

MyCommission Expires _____

BOBCAT TRAIL COMMUNITY DEVELOPMENT
DISTRICT LANDSCAPE AND IRRIGATION
MAINTENANCE RFP

EVALUATION CRITERIA

Pre-Requisite: Contractor has all applicable licenses?
Pre-Requisite: Contractor is authorized to do business in Florida?
Pre-Requisite: Contractor has 5 years of experience as a landscape maintenance contractor?

1. Personnel & Equipment (10 points possible)

Addresses the following criteria: skill set and experience of key management and assigned personnel, including the project manager and other specifically trained staff who will manage the property; present ability to manage this project; capability of performing the work; geographic location; inventory of necessary equipment, etc. Skill set includes certification, technical training, and experience with similar projects.

2. General Experience (10 points possible)

Addresses past and current record and experience in similar projects; volume of work previously awarded to the firm; past performance in any other contracts, etc.

3. Experience with St. Augustine Sod (5 points possible)

Addressespast and current record and experience in projects similar with St Augustine sod.

4. Understanding Scope of RFP (5 points possible)

Addresses: Does the Proposer demonstrate an understanding of the District's needs for the services requested? Does it provide all information requested? Does it demonstrate clearly the ability to perform these services? Does the Proposal as a whole appear to be feasible, in light of the scope of the work?

5. Financial Capacity (10 points possible)

Addresses whether the Proposer has demonstrated that it has the financial resources and stability as a business entity to implement and execute the work. Does the Proposer provide proof of required minimum insurance, and has the Proposer provided 5 years of audited financial statements or similar information?

6. Price (10 points possible)

Addresses the proposed pricing for the work, taking into account the base term, as well as the reasonableness of all unit pricing and other pricing information.

TOTAL POINTS POSSIBLE (50 POINTS)

PROPOSAL FORM
PART I - GENERAL INFORMATION

Proposer General Information:

Proposer Name _____

Street Address _____

P. O. Box (if any) _____

City _____ State _____ Zip Code _____

Telephone _____ Fax no. _____

1st Contact Name _____ Title _____

2nd Contact Name _____ Title _____

Parent Company Name (if any) _____

Street Address _____

P. O. Box (if any) _____

City _____ State _____ Zip Code _____

Telephone _____ Fax no. _____

1st Contact Name _____ Title _____

2nd Contact Name _____ Title _____

PART II - PERSONNEL AND EQUIPMENT

List the location of the Proposer's office, which would perform work/or the District.

Street Address _____

P. O. Box (if any) _____

City _____ State _____ Zip Code _____

Telephone _____ Fax no. _____

1st Contact Name _____ Title _____

2nd Contact Name _____ Title _____

PART III - BUSINESS STANDING AND INSURANCE

Is the Proposer registered with the State of Florida, Division of Corporations and authorized to do business in Florida? YES _____ NO _____

If no, please explain _____

What are the Proposer's current insurance limits?

1. Workers' Compensation:
   a. State Worker's Compensation $ _____ per occurrence / $ _____ aggregate / $ _____ per disease _____
   b. Employer's Liability $ _____

2. Commercial General Liability Insurance:

a. Bodily Injury, Sickness, Disease or Death, and Property Damage, per Occurrence $_____

b. Bodily Injury, Sickness , Disease or Death, and Property Damage, Aggregate $_____

c. Products-Completed Operations $ _____

d. Personal and Advertising Injury $_____

e. Property Damage liability insurance will provide Explosion, Collapse, and Under-ground coverages where applicable:

3. Automobile Liability:

- Bodily Injury:

Each Person $ _____

Each Accident $ _____

- Property Damage:

Each Occurrence $ _____

4. Contractual Liability Insurance:

a. General Aggregate $_____

b. Bodily Injury and Property Damage Combined Each Occurrence $_____

5. Pollution Insurance (covering third-party injury and property damage claims, including clean-up costs) $_____

Licensure - Please list all applicable state and federal licenses and state whether such licenses are presently in good standing:

_____

_____

_____

_____

_____

PART IV - ADDITIONAL SUPPORTING INFORMATION

Supervisory Personnel to be Assigned to this Project:
Please list primary managers /supervisors/technical personnel to be assigned to this project.

_____

_____

_____

_____

_____

_____

*** Does the Proposer currently employ any other technical personnel who have expertise in the scope of work for this Project and in pesticide application, herbicide application, arborculture, horticulture, or other relevant fields of expertise? Yes _____ No _____
If yes, please explain.

Security Measures - Please describe any background checks or other security measures taken with respect to the hiring and retention of personnel.
*** All employees shall be competent and qualified, and shall be U.S. citizens or legal residents, and/or authorized to work in the United States.

Sub-Contractors - Does the Proposer intend to use any subcontractors in connection with the work?
Yes _____ No _____
*** For each subcontractor please provide name, address, contact person, phone#, proposed duties/responsibilities, and location of equipment and workforce site to perform this work.

_____

_____

_____

_____

Please provide three (3) references of other CDD or HOA properties that you service with the contact information of each representative for that property.
***** Include as a separate attachment.**

Please include your Company's proposed Detailed Scope of Work and Services for this Project (i.e. fertilization, mowing, pest control, weed control, irrigation management, etc.).
***** Include as a separate attachment.**

Please list the major equipment to be used in this Project, and the location of equipment and workforce site to perform this work. Please also detail the # of Projects this equipment is dedicated to.
***** Include as a separate attachment.**

Please include pricing for the following:

* cost per cubic yard of gradeA Dark Brown Shredded Cypress Mulch $ _____

* individual cost per pruning of approximately 226 (+ or -) palms over 15' in height
$_____

* Unit cost for planting 250 annuals $ _____

ATTACHMENT 7

Laura Filler
8/13/24 BCT Ride Around
Aug 13, 2024 at 11:58:58 AM
John Fowler
Jeffrey Brall Bill Hadovski
Valerie Duemmel
Scott Brizendine

John,
Thank you for meeting with me today to discuss the BCT landscape scope of work that needs to be completed. Per our conversation, I understand that it will be your responsibility to hold the landscape vendor to their contractual obligations. It will be up to the BCT Landscape Committee to "police" the community for any inconsistencies in the details of the service that is provided by the vendor.
The committee is looking forward to working with you and Rizzetta & Company and moving forward to maintain a neat and manicured landscape appearance. Please see 2 attachments: the 2023 Plant Replacement Project & the Electronic LMP Contract.
Laura

Tap to Download
LMP Contract Electronic.docx
0.1 MB
Final Report 2023.pdf
2 pages
0.2 MB

LANDSCAPE AND IRRIGATION MAINTENANCE AGREEMENT

This Landscape and Irrigation Maintenance Agreement ("Contract" or "Agreement"), is made between **BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT** (hereinafter referred to as "District" or "Owner"), a community development district organized under the laws of the State of Florida and established pursuant to Chapter 190, Florida Statutes, being situated in Sarasota, Florida, and having offices at c/o INFRAMARK, 210 North University Drive, Suite 702, Coral Springs, Florida 33071, and **LANDSCAPE MAINTENANCE PROFESSIONALS, INC.,** (hereinafter referred to as "Contractor") whose business address is P.O. Box 267, Seffner, Florida 33583.

RECITALS

WHEREAS, the District was established for the purpose of financing, funding, planning, establishing, acquiring, constructing or reconstructing, enlarging or extending, equipping, operating and maintaining systems and facilities for certain infrastructure improvements; and

WHEREAS, the District has a need to retain an independent contractor to provide landscape maintenance services for certain lands within and around the District; and

WIIEREAS, Contractor submitted a proposal, a portion of which is attached hereto as **Exhibit "B"** (hereinafter "Proposal") and incorporated herein by reference, and represents that it is qualified to serve as a landscape maintenance contractor and provide services to the District.

NOW, TIIEREFORE, in consideration of the mutual covenants set forth below, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, Contractor and District agree as follows:

I. INCORPORATION OF RECITALS

The recitals stated above are true and correct and by this reference are incorporated by reference as a material part of this Agreement.

II. DESCRIPTION OF WORK

The work to be performed shall include all labor, material, equipment, supervision, and transportation necessary to perform the services as more fully set

forth in the scope of services attached hereto as **Exhibit "A"** or any Additional Services Order subject to this Contract (hereinafter referred to as the "Contract Work"). Contractor shall perform in accordance with the Proposal attached hereto as **Exhibit "B".** In addition to the services listed under "Base Management Mowing" on Exhibit "B," Contractor shall also mow fifteen (15) feet around the retention pond near the tower ten (10) times per year at no additional cost. A site map of the District showing the Landscape Maintenance Areas to be maintained by the Contractor is attached hereto as **Exhibit "C".**

While performing the Contract Work, the Contractor shall assign such experienced staff as may be required, and such staff shall be responsible for coordinating, expediting, and controlling all aspects to assure completion of the Contract Work in accordance with the Proposal and

attached specifications. All work shall be performed in a neat and professional manner reasonably acceptable to the District and shall be of the very highest quality at least in accordance with industry standards. The performance of all services by the Contractor under this Contract and related to this Contract shall conform to any written instructions issued by the District.

1. Should any work and/or services be required which are not specified in this Contract, an Additional Services Order, or any addenda, but which are nevertheless necessary for the proper provision of services to the District, such work or services shall be fully performed by the Contractor as if described and delineated in this Contract at no additional cost to the District.

2. The Contractor agrees that the District shall not be liable for the payment of any work or services unless the District, through an authorized representative of the District, authorized the Contractor, in writing, to perform such work.

3. The District shall designate in writing one or more individuals to act as the District's representative(s) with respect to the Contract Work, all as more specifically referenced below. The District's representative(s) shall have complete authority to transmit instructions, receive information, interpret and define the District's policies and decisions with respect to materials, equipment, elements, and systems pertinent to the Contract Work.

4. Scheduling of maintenance visits will be determined by the District. The District shall be contacted at least 48 hours ahead of time when services cannot be performed by Contractor on schedule and an alternate time shall be scheduled in accordance with the community's rules and regulations for operations of contractors on site. The District may at any time request alterations to the general maintenance service timing provided that the Contractor may accomplish the request without incurring additional expense for equipment, materials, or labor.

2 SAC

☐

5. Contractor agrees to meet with a District representative no less than one (1) time per month to walk the property to discuss conditions, schedules, and items of concern regarding this Contract. At that time, the District will compile a list of landscape-related items that should be performed before the next walk through. The District will be responsible for scheduling the monthly inspections. The District must have no less than fourteen (14) days' notice if there is a need to reschedule. All scheduled inspections will proceed with or without the attendance of the Contractor. Notwithstanding, Contractor is responsible for a weekly inspection report of the entire property subject to the Contract Work.

6. Contractor shall use due care to protect the property of the District, its residents, and landowners from damage. Contractor agrees to repair, at its sole cost, any damage resulting from the Contract Work within twenty-four (24) hours of the damage occurring or receiving written notice, whichever is earlier.

7. Contractor shall replace, at Contractor's expense, all plant material that, in the opinion of the District fails to maintain a healthy, vigorous condition as a result of the Contractor's failure to perform the Contract Work specified herein. It is the responsibility of the Contractor to notify the District in writing of any conditions beyond the control of the Contractor or scope of Contract Work that may result in the damage and/or loss of plant material. This responsibility includes, but is not limited to the following: vandalism and/or other abuse of property, areas of the site that continually hold water, areas of the site that are consistently too dry. Contractor shall provide such items via written notice together with recommended solutions and related costs. Failure of the Contractor to report such

items shall result in the Contractor incurring full responsibility and cost for repairs necessary.

8. In the event of a declared emergency or disaster, the Contractor shall provide the following Time and Materials services:

a. Debris removal services shall be available on a timely basis and at a reasonable price. Prior to mobilization for debris removal activities, Contractor shall provide the District, in writing, hourly rates for personnel and equipment. Unreasonable rates will be rejected. All overhead costs shall be inclusive in the hourly rate.

b. Hourly rates for equipment apply only when equipment is operating and includes all associated costs such as operator, fuel, maintenance, and repair.

c. Personnel and equipment hourly rates will include only those hours that Contractor's personnel are performing the debris removal activities. Stand-by time is not an eligible expense.

d. Disaster Recovery Assistance Services shall not exceed a total of seventy (70) hours worked for each declared emergency/disaster without additional prior authorization including a proposal for all estimated additional expenses.

e. Contractor shall maintain and supply the District with all of the necessary and adequate documentation on all emergency/disaster related services to support reimbursement by other local, state, or federal agencies.

f. The District reserves the right to immediately terminate all Disaster Recovery Assistance activities under this Agreement for any reason. The District will not be held responsible for any loss incurred by Contractor as a result of District's election to terminate any such activities pursuant to this paragraph. A-207

III. CONTRACT SUM; TERM

The District agrees to pay Contractor for the Contract Work, a not to exceed sum of **One Hundred Forty-Two Thousand, Forty-Seven and 00/100 dollars ($142,047.00) per year** as detailed in Exhibit "B," payable in twelve (12) equal monthly installments of **Eleven Thousand, Eight Hundred Thirty-Seven and 25/100 dollars ($11,837.25),** for a term of three (3) years unless terminated earlier as provided for in this Contract or extended per the mutual written agreement of the parties.

1. If the District should desire additional work or services, including but not limited to adding additional lands to be maintained, the Contractor agrees to negotiate in good faith to undertake such additional work or services. Upon successful negotiations, the parties shall agree in writing to an Additional Services Order, addendum, or change order to this Contract. The Contractor shall be compensated for such agreed additional work or services based upon a payment amount acceptable to the parties and agreed to in writing.

2. The District may require, as a condition precedent to making any payment to the Contractor that all subcontractors, material men, suppliers or laborers be paid and require evidence, in the form of lien releases or partial waivers of lien, to be submitted to the District by those subcontractors, material men, suppliers, or laborers, and further require that the Contractor provide an Affidavit relating to the payment of said indebtedness. Further, the District shall have the right to require, as a condition precedent to making any payment,

4 SAC

evidence from the Contractor, in a form satisfactory to the District, that any indebtedness of the Contractor, as to services to the District, has been paid and that the Contractor has met all of the obligations with regard to the withholding and payment of taxes, Social Security payments, Workmen's Compensation, Unemployment Compensation contributions, and similar payroll deductions from the wages of employees.

3. The Contractor shall maintain records conforming to usual accounting practices. The Contractor agrees to render monthly invoices to the District, in writing, which shall be delivered or mailed to the District by the fifth (5th) day of the next succeeding month. Each monthly invoice will include such supporting information as the District may reasonably require the Contractor to provide. Within thirty (30) days of receipt of said invoice and supporting documentation, the District shall remit payment to Contractor in accordance with the monthly invoice for non-disputed amounts. The District reserves the right to withhold all or any portion of a payment should the Contract Work not be completed, in the District's sole and absolute discretion, in accordance with the scope and terms set forth in this Contract, or if the work is otherwise found to be deficient. Any non-conforming and/or deficient work not corrected within the manner and timeframe prescribed by the District after having been brought to the Contractor's attention will not be paid for. The District also reserves the right to hire an outside vendor to complete and/or correct non-conforming and/or deficient work if Contractor fails to correct as set forth above, and charge such costs to Contractor.

IV. TIME OF COMMENCEMENT

The work to be performed under this Contract shall commence after Contractor provides the District the requisite insurance referenced herein and no later than October 1, 2020.

V. CONTRACTOR'S REPRESENTATIONS

In order to induce the District to enter into this Contract, Contractor makes the following representations, upon which the District has actually and justifiably relied:

1. That Contractor has examined and carefully studied the project site, and that Contractor has the experience, expertise and resources to perform all required work.

2. That Contractor has visited the site and at least a fair representative sample of the project area and become familiar with and is satisfied as to the general, local, and site conditions that may affect cost, progress, performance or furnishing of the work to be performed pursuant to this Contract.

5 SM

☐

3. That Contractor is familiar with and can and shall comply with all federal, state, and local laws and regulations that may affect cost, progress, performance, and furnishing of the work to be performed pursuant to this Contract.

4. The Contractor agrees to be responsible for the care, health, maintenance, and replacement, if necessary, of the landscaping. The Contractor shall be strictly liable for the decline or death of any plant material, regardless of whether such decline or death is due to the negligence of the Contractor, and except that the Contractor shall not be responsible for fire, cold, storm or wind damage, incurable or uncontrollable diseases, or damage due to vandalism. Upon the occurrence of any such exceptions not caused by Contractor's lack of diligence, Contractor shall immediately notify the District. Contractor shall replace, at Contractor's expense, all plant material that, in the sole and absolute discretion of the

District, fails to maintain a healthy, vigorous condition as a result of the Contractor's failure to perform the Contract Work specified herein. No changes to the compensation set forth in this Contract shall be made based on any claim that the existing landscaping was not in good condition or that the site was unsuitable for such landscaping.

VI. DUTIES AND RIGHTS OF CONTRACTOR

Contractor's duties and rights are as follows:

1. Responsibility for and Supervision of Project: Contractor shall be solely responsible for all work specified in this Contract, including the techniques, sequences, procedures, means, and coordination for all work. Contractor shall supervise and direct the work to the best of its ability, giving all attention necessary for such proper supervision and direction.

2. Discipline, Employment, Uniforms: Contractor shall maintain at all times strict discipline among its employees and shall not employ for work on the project any person unfit or without sufficient skills to perform the job for which such person is employed. All laborers and foremen of the Contractor shall perform all Contract Work on the premises in a uniform to be designed by the Contractor. The shirt and pants shall be matching and consistent. At the start of each day, the uniform shall be reasonably clean and neat. No shirtless attire, no torn or tattered attire or slang graphic T-shirts are permitted. No smoking in or around the buildings will be permitted. Rudeness or discourteous acts by Contractor's employees will not be tolerated. No Contractor solicitation of any kind is permitted on property.

3. Furnishing of Labor, Materials/Liens and Claims: Contractor shall provide and pay for all labor, materials, and equipment, including tools, equipment and machinery, utilities, including water, transportation, and all other facilities and

6 SAC

☐

services necessary for the proper completion of work in accordance with this Contract. Contractor waives the right to file mechanic's and construction liens. The Contractor shall keep the District's property free from any material men's or mechanic's liens and claims or notices in respect to such liens and claims, which arise by reason of the Contractor's performance under this Contract, and the Contractor shall immediately discharge any such claim or lien. In the event that the Contractor does not pay or satisfy such claim or lien within three (3) business days after the filing of notice thereof, the District, in addition to any and all other remedies available under this Contract, may terminate this Contract to be effective immediately upon the giving of notice of termination.

4. Payment of Taxes, Procurement of Licenses and Permits, Compliance with Governmental Regulations: Contractor shall pay all taxes required by law in connection with the Contract Work, including sales, use, and similar taxes, and shall secure all licenses and permits necessary for proper completion of the Contract Work, paying the fees therefore and ascertaining that the permits meet all requirements of applicable federal, state and county laws or requirements. If the Contractor fails to comply with any requirement of such agency within three (3) business days after receipt of any such notice, order, request to comply notice, or report of a violation or an alleged violation, the District may terminate this Agreement, such termination to be effective upon the giving of notice of termination.

5. Responsibility for Negligence of Employees and Subcontractors: Contractor shall be fully responsible for all acts or omissions of its employees on the project, its subcontractors and their employees, and other persons doing work under any request of Contractor.

6. Safety Precautions and Programs: Contractor shall provide for and oversee all safety orders, precautions, and programs necessary for reasonable safety of the Contract Work. Contractor shall maintain an adequate safety program to ensure the safety of employees and any other individuals working under this Contract. Contractor shall comply with all OSHA standards. Contractor shall take precautions at all times to protect any persons and property affected by Contractor's work, utilizing safety equipment such as bright vests and traffic cones.

7. Scheduling. In the event that time is lost due to heavy rains ("Rain Days"), the Contractor agrees to reschedule its employees and divide their time accordingly to complete all scheduled services during the same week as any Rain Days. The Contractor shall provide services on Saturdays if needed to make up Rain Days with prior notification to and approval by, the District Representatives (defined herein).

7 SAL

8. Protection of Property. Contractor in conducting the Contract Work shall use all due care to protect against any harm to persons or property. If the Contractor's acts or omissions result in any damage to property within the District, including but not limited to damage to landscape lighting and irrigation system components, entry monuments, etc., the Contractor shall immediately notify the District and promptly repair all damage - and/or promptly replace damaged property - all at the Contractor's sole cost and expense and to the reasonable satisfaction of the District.

9. Deficiencies. If the District Representatives identify any deficient areas, the District Representatives shall notify the Contractor whether through a written report or otherwise. The Contractor shall then within the time period specified by the District Representatives, or if no time is specified within forty-eight (48) hours, explain in writing what actions shall be taken to remedy the deficiencies. Upon approval by the District, the Contractor shall take such actions as are necessary to address the deficiencies within the time period specified by the District, or if no time is specified by the District, then within three (3) calendar days and prior to submitting any invoices to the District. If the Contractor does not respond or take action within the specified time period, and without intending to limit the District's remedies in any way, the District shall have the rights to, among other remedies available at law or in equity, impose fees on the Contractor of one hundred dollars ($100.00) per day; to withhold some or all of the Contractor's payments under this Contract; and to contract with outside sources to perform necessary work with all charges for such services to be deducted from the Contractor's compensation. Any oversight by the District Representatives of Contractor's work is not intended to imply that the District shall underwrite, guarantee, or ensure that the work is properly done by the Contractor, and it is the Contractor's responsibility to perform the Contract Work in accordance with this Contract.

10. Environmental Activities. The Contractor agrees to use best management practices, consistent with industry standards, with respect to the storage, handling and use of chemicals (e.g., fertilizers, pesticides, etc.) and fuels. The Contractor shall keep all equipment clean (e.g., chemical sprayers) and properly dispose of waste. Further, the Contractor shall immediately notify the District of any chemical or fuel spills. The Contractor shall be responsible for any environmental cleanup, replacement of any turf or plants harmed from chemical burns, and correcting any other harm resulting from the Contract Work to be performed by Contractor.

VII. INDEMNIFICATION

Contractor does hereby indemnify and hold harmless District, its officers, agents and employees, and volunteers from liabilities, damages, losses and costs, including but not limited to, reasonable attorney's fees, to the extent caused by the negligence, recklessness or intentional

wrongful misconduct of Contractor and persons or entities employed or utilized by Contractor in the performance of this Contract. In accordance with Section 725.06, Fla. Stat., District and

Contractor agree that Contractor's responsibility regarding the foregoing indemnification shall not exceed One Million Dollars ($1,000,000.00). The parties specifically agree that the limitation amount bears a reasonable commercial relationship to the Contract.

In any and all claims against District or any of its agents or employees by any employee of Contractor, any subcontractor, anyone directly or indirectly employed by any of them, or anyone for whose acts any of them may be liable, the indemnification obligation under the previous paragraph shall not be limited in any way as to the amount or type of damages, compensation or benefits payable by or for Contractor or any subcontractor under workers' compensation acts, disability benefit acts, or other employee benefit acts.

Contractor shall and does hereby indemnify and hold harmless District and anyone directly or indirectly employed by it from and against all claims, suits, demands, damages, losses, and expenses (including attorney's fees) arising out of any infringement of patent or copyrights held by others and shall defend all such claims in connection with any alleged infringement of such rights.

VIII. INSURANCE

1. Before performing any Contract Work, Contractor shall procure and maintain, during the life of the Contract, unless otherwise specified, insurance listed below. The policies of insurance shall be primary and written on forms acceptable to the District and placed with insurance carriers approved and licensed by the Insurance Department in the State of Florida and meet a minimum financial AM Best Company rating of no less than "A Excellent: FSC VII." No changes are to be made to these specifications without prior written specific approval by the District.

2. WORKERS' COMPENSATION: Contractor will provide Workers' Compensation insurance on behalf of all employees who are to provide a service under this Contract, as required under applicable Florida Statutes AND Employer's Liability with limits of not less than $100,000.00 per employee per accident, $500,000.00 disease aggregate, and $100,000.00 per employee per disease.

In the event the Contractor has "leased" employees, the Contractor or the employee leasing company must provide evidence of a Minimum Premium Workers' Compensation policy, along with a Waiver of Subrogation in favor of the District. All documentation must be provided to the District at the address listed below.
No contractor or sub-contractor operating under a worker's compensation exemption shall access or work on the site.

3. COMMERCIAL GENERAL LIABILITY: Commercial General Liability including but not limited to bodily injury, property damage, contractual, products and completed

operations, and personal injury with limits of not less than $2,000,000.00 per occurrence, $2,000,000.00 aggregate covering all work performed under this Contract.

4. AUTOMOBILE LIABILITY: Including bodily injury and property damage, including all vehicles owned, leased, hired and non-owned vehicles with limits of not less

than
$2,000,000.00 combined single limit covering all work performed under this Contract.

5. UMBRELLA LIABILITY: With limits of not less than $2,000,000.00 per occurrence covering all work performed under this Contract.

6. Each insurance policy required by this Contract shall:

a. Apply separately to each insured against whom claim is made and suit is brought, except with respect to limits of the insurer's liability.

b. Be endorsed to state that coverage shall not be suspended, voided, or canceled by either party except after 30 calendar days prior written notice, has been given to the District.

c. Be written to reflect that the aggregate limit will apply on a per claim basis.

7. The District shall retain the right to review, at any time, coverage, form, and amount of msurance.

8. The procuring ofrequired policies of insurance shall not be construed to limit Contractor's liability or to fulfill the indemnification provisions and requirements of this Contract.

9. The Contractor shall be solely responsible for payment of all premiums for insurance contributing to the satisfaction of this Contract and shall be solely responsible for the payment of all deductibles and retentions to which such policies are subject, whether or not the District is an insured under the policy.

10. Contract award will be subject to compliance with the insurance requirements. Certificates of insurance evidencing coverage and compliance with the conditions to this Contract, and copies of all endorsements are to be furnished to the District prior to commencement of Contract Work, and a minimum of 10 calendar days before the expiration of the insurance contract when applicable. All insurance certificates shall be received by the District before the Contractor shall commence or continue work.

11. Notices of accidents (occurrences) and notices of claims associated with work being performed under this Contract shall be provided to the Contractor's insurance company and to the District as soon as practicable after notice to the insured.

12. Insurance requirements itemized in this Contract and required of the Contractor shall be provided on behalf of all sub-contractors to cover their operations performed under this

10

Contract. The Contractor shall be held responsible for any modifications, deviations, or omissions in these insurance requirements as they apply to sub-contractors.

13. All policies required by this Contract, with the exception of Workers' Compensation, or unless specific approval is given by the District, are to be written on an occurrence basis, shall name the District, its Supervisors, Officers, Agents, Employees and Volunteers as additional insured as their interest may appear under this Contract. Insurer(s), with the exception of Workers' Compensation on non-leased employees, shall agree to waive all rights of subrogation against the District, its Supervisors, Officers, Agents, Employees or Volunteers.

14. If the Contractor fails to have secured and maintained the required insurance, the District has the right (without any obligation to do so, however), to secure such required insurance in which event, the Contractor shall pay the cost for that required insurance and shall furnish, upon demand, all information that may be required in connection with the District's obtaining the required insurance.

IX. EARLY TERMINATION FOR BREACH OF CONTRACT

1. Contractor's Termination. Contractor may terminate this Contact with ninety (90) days' written notice with or without cause. Termination notice must be sent to and received by the District by certified mail. The ninety (90) day notice shall commence on the day of actual receipt of said written notice by the District.

2. District's Termination. District may, in its sole and absolute discretion, whether or not reasonable, on thirty (30) days' written notice to Contractor, terminate this contract at its convenience, with or without cause, and without prejudice to any other remedy it may have. Termination notice must be sent to the Contractor by certified mail. The thirty (30) day notice shall commence on the day of mailing of said notice to the Contractor. In case of such termination for the District's convenience, the Contractor shall be entitled to receive payment for work executed, subject to whatever claims or off-sets the District may have against the Contractor. On such termination, the District may take possession of the work site and all materials thereon, and finish the work in whatever way it deems expedient. If the expense of finishing the work exceeds the unpaid balance at the time of termination, Contractor agrees to pay the difference to District within ten (10) days after written notice.

On a default by Contractor, District may elect not to terminate the Contract, and in such event, it may make good the deficiency in which the default consists and deduct the costs from the payment then or to become due to Contractor. On a default by Contractor, the District further reserves the right

to pursue any and all remedies available under the law, including but not limited to equitable and legal remedies.

X. ATTORNEY'S FEES

If any dispute occurs between the parties as a result of this Contract or any other document or act required by this Contract, the prevailing party shall be entitled to recover reasonable attorney's fees and all court costs including attorney's fees and court costs incurred in any pre-trial, trial, bankruptcy and/or appellate proceedings as well as attorney fees and costs incurred in determining entitlement to and the reasonableness of such amounts.

XI. MISCELLANEOUS

1. No assignment by either party to this Contract of any rights under or interests in this Contract will be binding on another party hereto without the written consent of the party sought to be bound; and specifically, but without limitation, moneys that may become due and moneys that are due may not be assigned without such consent (except to the extent that the effect of this restriction may be limited by law), and unless specifically stated to the contrary in any written consent to any assignment, no assignment will release or discharge the assignor from any duty or responsibility under this Contract.

2. Contractor binds itself, its partners, successors, assigns, and legal representatives to the District and any of the District's successors, assigns, and legal representatives of the District in respect of all covenants, contracts, and obligations contained in this Contract. No employees, agents or representatives of the District are personally or individually bound by this Contract.

3. This Contract is solely for the benefit of the formal parties identified herein and no right or cause of action shall accrue upon or by reason hereof, to or for the benefit of any third party not a formal party hereto. Nothing in this Contract expressed or implied is intended or shall be construed to confer upon any person or corporation other than the parties hereto any right, remedy, or claim under or by reason of this Contract or any provisions or conditions hereof, and all of the provisions, representations, covenants, and conditions herein contained shall inure to the sole benefit of and shall be binding upon the parties hereto and their respective representatives, successors, and assigns.

4. Nothing in this Contract shall be deemed as a waiver of immunity or limits of liability of the District beyond any statutory limited waiver of immunity or limits of liability which may have been adopted by the Florida Legislature in Section 768.28, Fla. Stat., or other statute, and nothing in this Contract shall inure to the benefit of any third party for the

12 DAC

purpose of allowing any claim which would otherwise be barred under the Doctrine of Sovereign Immunity or by operation of law.

5. The laws of the State of Florida shall govern all provisions of this Contract. In the event the parties to this Contract cannot resolve a difference with regard to any matter arising here from, the dispute will be referred to court-ordered mediation pursuant to Section 44.102, Fla. Stat., as amended. Ifno agreement is reached, any party may file a civil action and/or pursue all available remedies whether at law or equity. Venue for any dispute shall be Charlotte County, Florida.

6. This Contract and its attachments contain the entire agreement of the parties and there are no binding promises or conditions in any other agreements whether oral or written. This Contract shall not be modified or amended except in writing with the same degree of formality with which this Contract is executed.

7. A waiver of any breach of any provision of this Contract shall not constitute or operate as a waiver of any other breach of such provision or of any other provisions, nor shall any failure to enforce any provision hereof operate as a waiver of such provision or of any other provisions.

8. The execution of this Contract has been duly authorized by the appropriate body or official of the District and the Contractor, both the District and the Contractor have complied with all the requirements of law, and both the District and the Contractor have full power and authority to comply with the terms and provisions of this instrument.

9. Any provision or part of this Contract held to be void or unenforceable under any law or regulation shall be deemed stricken, and all remaining provisions shall continue to be valid and binding upon District and Contractor, who agree that this Contract shall be reformed to replace such stricken provision or part thereof with a valid and enforceable provision that comes as close as possible to expressing the intention of the stricken provision.

10. To the extent that the terms described in the attachments conflict with the terms of this Contract document, the terms of this Contract shall control.

11. Notices: Unless specifically stated to the contrary elsewhere in this Contract, where notice is required to be provided under this Contract, notice shall be deemed sent upon transmittal of the notice by e-mail and by U.S. Mail to the other party at the addresses listed below and shall be deemed received upon actual receipt by mail or e-mail, whichever is first:

13 CAC

☐

☐

To District:

With a copy to:

To Contractor:

Bobcat Trail Community Development District c/o INFRAMARK
210 North University Drive, Suite 702 Coral Springs, FL 33071
Attention: Mark Vega, District Manager Mark.Vega@Inframark.com

R. David Jackson, Esq
Persson, Cohen & Mooney, P.A. 6853 Energy Court
Lakewood Ranch, Florida 34240 djackson@swflgovlaw.com

Landscape Maintenance Professionals, Inc. 1306 Rome Avenue
Sarasota, FL 34243
Attention: Scott Carlson, Vice President/General Manager

☐

XII. COMPLIANCE WITH PUBLIC RECORDS LAWS

Contractor understands and agrees that all documents of any kind provided to the District in connection with this Contract may be public records and shall be treated as such by the Contractor, in accordance with Florida law. As such, the Contractor must (1) keep and maintain public records required by the District to perform the service; (2) upon request by the District's Public Records Custodian, provide the District with the requested public records or allow the records to be inspected or copied within a reasonable time period at a cost that does not exceed the cost provided in Chapter 119, Florida Statutes; (3) ensure that public records which are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the Contract term and following the Contract term if the Contractor does not transfer the records to the Public Records Custodian of the District; and (4) upon completion of the Contract, transfer to the District, at no cost, all public records in Contractor's possession or the Contractor must keep, maintain and meet all applicable requirements for retaining public records pursuant to Florida laws. When such public records are transferred by the Contractor, the Contractor shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. All records stored electronically must be provided to the District in a format that is compatible with Microsoft Word or in Adobe .pdfformat.

IF THE CONTRACTOR HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO THE CONTRACTOR'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS AGREEMENT, CONTACT THE DISTRICT'S CUSTODIAN OF PUBLIC RECORDS SANDRA DEMARCO, INFRAMARK INFRASTRUCTURE MANAGEMENT SERVICES, 210 N. UNIVERSITY DRIVE, SUITE 702, CORAL SPRINGS, FL 33071, TEL. 954-603-0033 EXT. 40532, SANDRA.DEMARCO@INFRAMARK.COM.

This portion left blank

15 Exec

ies have exc PROFESSIONALS, INC. :t forth A-207

S Signature

ATTEST:
ignatu_r

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

&

Q(rfJ
7-Secretary
□ Assistant Secretary

ATTEST:

By: *41-* *&we*
Jif Chairperson
'tJ Vice Chairperson

Date:

LANDSCAPE MAINTENANCE

Signature

By: William Cipp

A-207

By: tkr A ConkQ'f\ Date9 '1,o1,0

Exhibit A: Exhibit B: Exhibit C:

Scope of Services Proposal
Landscape Maintenance Areas Exhibit

EXHIBIT A

Practical Specifications-Contract Landscape Management
Bobcat Trail Community Development District
North Port, Florida
June2020

Specifications Are Based On A 12-Month Schedule This contract is for FY2021 to 2023 (10/01/2020-9/30/2023)

Scope of Wark
Contractor shall furnish all horticultural supervision, labor, material, equipment and transportation required to maintain the landscape throughout thc contract period, as specified herein

Lawn Care
Mowing and Edging: Contractor will mow weekly during the heavy growing months and every other week during the slow growing period totaling 42 mowings per year.

A-207

Contractor will mow the remote or secondary areas 18 times per year.

Contractor will mow 15' around retention pond near commercial side tower 10 times per year.

Contractor will mow Woodhaven from thc sidewalk to thc street at designated COD arcas I 8 times pcr ycar.

Mowing height will be based on what is horticulturally correct for the turf variety taking into account the season.

Clippings shall be recycled and not removed from the lawn area unless they present an unsightly appearance, or lying in swaths, which may damage the lawn. Mowers must discharge clippings away from all bodies of water. No debris will be dispersed down any sewer drains or blown back into beds.

Obstacles in the lawn area will be line-trimmed at each mowing.

Gardening debris generated from Contractor work shall be removed fi-om planting beds and paved areas on day of service.

Curbs and walks shall be edged 42 times per year. Bed edges and tree rings (soft edging) shall be edged every other mowing during the scheduled occurrence

Fertilization:
St. Augustine lawns shall be fertilized with a commercial fertilizer 5 times per year providing a total of 4 - 6 pounds of actual nitrogen per 1000 square feet per year. Timing
of applications will be adjusted to meet horticultural conditions and Contractor will do its best to apply

prior to the irrigation schedule that day as to water in the fertilizer. Contractor will abide by thc Notih Port fertilizer ordinance, which is cunently no fertilizer on turf areas from May 1 until September 30.

Pesticide:
The Contractor will apply recommended, legally approved insecticides to lawn areas to control common insects, (i.e.
chinch bug, grubs and mole crickets) 3 times per year. We will spot spray between applications to control problem areas at no additional charge.

Fire Ant Control:
The Contractor will apply fire ant control a minimum of2 times per year to the entire property. A growth regulator type product will be used which focuses on killing the queen and therefore the entire mound. Visible mounds, which escape these treatments, will be treated with conventional pesticides within 24 hours of being reported. Any mounds that are visible above the turf will be removed or spread out to previous grade after the ants have been removed. This application shall be noted in the weekly report.

Weed Control: Post-emergence: Treat broadleafweeds with selective herbicides 2 times per year. We will spot spray between applications to control problem areas.

Shrub and Groundcover Care
Weed Control: The Contractor must control weeds in all paved surfaces, such as street gutters, curbs and sidewalks as well as shrub beds and tree rings. Weeding of plant beds and tree rings will be done in conjunction with mowing rounds, preferably using pre-emergent and or selective contact herbicides. Hand pulling and chemicals must be used as control methods to maintain essentially a weed-free environment.

Pruning: Shrubs shall be sheared/or pruned 12 times per year to address safety concerns; to maintain growth within space limitations; and to eliminate damaged or diseased wood.

Pre-emergence: The Contractor will apply 3 blanket applications to all ornamental bed areas. The chosen chemical will be recommended and legally approved for the specific weeds.

17 87

Fertilization: The Contractor will fertilize applicable shrub beds with a granular fertilizer with micronutrients 3 times per year. Applications rates will vary depending upon size and age of plants.

Pesticide: The Contractor will apply recommended, legally approved insecticides to shrub beds to control common insects a minimum of 4 times per year (excludes nematode and flea treatment unless specified otherwise).

Tree and Palm Care
Pruning:

fertilizations, insecticides, miticides, fungicides, "pinching back" of expired blooms, etc.

Any additional quantities of flowers over the 250 per change out or any additional requests to change the annuals will be done at a locked in price of _per 4 ½" annual.

Optional
The Contractor will install frost blankets over plant material with authorization from Bobcat Trail representative. Contractor will cover areas that are authorized by Bobcat Trail CDD. Contractor must have a minimum of 12 hours' notice to complete the task. Contractor will bill Client for the man hours spent to complete the

The contractor will remove only low-hanging branches

task at per hour regular time and

.per hour if work

that present a hazard to pedestrian or vehicular traffic up to 15 feet in height from ground level IO times per year. Remove all branches that effect street lights or overhang onto roadways or sidewalks. Limbs will be elevated to a uniform height and symmetrical shape. All sucker growth shall be removed weekly along with vines or as required to maintain a clean neat appearance.

Remove dead and yellow palm fronds and seedlings up to 15 feet in height from ground level 10 times per year

Palms over I 5' in height to be trimmed one time per year. Washingtonian Palms along boulevard will be trimmed two times per year. The Contractor will hold its price of

- per palm through the duration of the contract

Fertilization:
Fertilize applicable landscape trees with a balanced fertilizer with micronutrients 3 times per year.
Application rates will vary depending upon size and age of plants. Fertilize applicable palms with a balanced fertilizer with micronutrients 3 times per year.
Application rates will vary depending upon size and age of plants.

Mulch:
The Contractor will install Grade A Dark Brown shredded cypress mulch in all ornamental beds and around tree rings to maintain an overall depth of 3 inches.

5/23/2020 **LANDSCAPING YEARLY SCHEDULE – OCTOBER 2020-2023**

TASK	JAN	FEB	MAR	APR	MAY	JUNE	JULY	AUG	SEP	OCT	NOV	DEC	TOTAL:
Mow, Line Trim,.Blow	2	2	4	4	4	4	4	4	4	4	4	2	42
Hard Edge	2	2	4	4	4	4	4	4	4	4	4	2	42
Bed Edge	1	1	1	2	2	2	2	2	2	2	2	1	20
Trash Pickup	2	2	4	4	4	4	4	4	4	4	4	2	42
Fertilize Turf		1		1			1			1		1	5
Fert. Shrubs			1		1					1			3
Fert. Palms			1		1					1			3
Fertilize			1		1								

Trees													
Insecticide Turf	1		1		1		1		1		1		6
Fire Ant Control as needed	1	1	1	1	1	1	1	1	1	1	1	1	12
Insecticide Shrubs	1	1	1	1	1	1	1	1	1	1	1	1	12
Weed Control Turf		1									1		2
Weed Control Beds	1	1	1	2	2	2	2	2	2	2	2	2	18
Pre-Emerg. Beds		1				1							2
Prune Shrubs	1	1	1	1	1	1	1	1	1	1	1	1	12
Prune Palms (15' Max)	1		1	1	1	1	1	1	1	1	1		10
Prune Palms (>15')					1					1 Wash			2
Prune Oaks (17' Max)	1		1	1	1	1	1	1	1	1	1		10
Soil Sample								1		1			2
Mulch maintain 3"					1								1
Weed Contr. Roads	1	1	1	2	2	2	2	2	2	1	1	1	18
Install Annuals		1			1			1			1		4
Mow-Wood-haven,side-walk to road	1	1	1	1	2	2	2	2	2	2	1	1	18
Mow Secondary CDD areas under trees	1	1	1	1	2	2	2	2	2	2	1	1	18
Commercial Lake/tower @ hospital			1	1	1	1	1	1	1	1	1	1	10
Irrigation inc distribution components	1	1	1	1	1	1	1	1	1	1	1	1	12

outlined in this
contract. If the loss is due to act of god, such as
drought or storm damage, no irrigation water supplied to the property, loss or regulated use of chemicals or fertilizers by government regulations, crabgrass or Bermuda grass encroachment, or any situation that is not controllable by Contractor, Contractor will not be held responsible. Contractor must notify the board within a reasonable time of any issues in writing that Contractor feels could cause plant or turfloss and provide optional solutions even if they are an additional cost

ROADWAY AREAS

STREET NAME	ACRES ±
LYNX RUN	5.68
	0.09
	0.54
LYNX TRAIL	
VILLA ROAD	
SILVER PALM ROAD	
FISHTAIL PALM COURT	0.54
C A NARY PALM WAY	0.50
BOBCAT TRAIL	0.93
	6.0-3
	2.03
	0.-6-8
ROYAL PALM DRIVE	
PHOENIX PALM TERRACE	



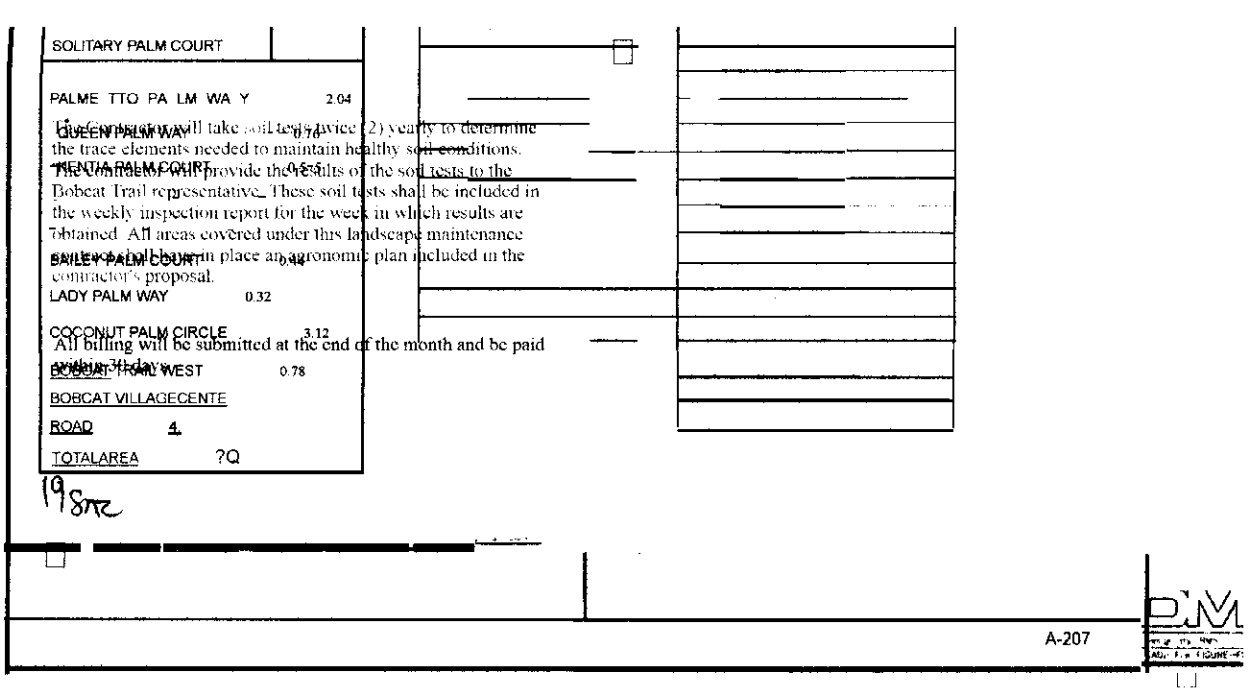


EXHIBIT B (1)

BOBCAT TRAIL COD

Operational Narrative

A-207

PERSONNEL- The individual who will be responsible for directly inanaging this account will be James Bennett. James has been with LMP for 5+ years and in the Greens Industry for 15 years, and during this tenure he has extensive experience managing very large CDD districts and HOA's as well. His attention to detail and his communication separate James from other Account Managers in the industry. He is very personable, and is not afraid to get his hands dirty when needed. James understands that relationships are the most imp01tant facet of our business and he strives to instill this on every property he is involved with and is the foundation in which he manages.

The LMP local office that will be servicing Bobcat Trail COD is approximately 45 minutes away, on Rome Avenue in Sarasota, close to 1-75, affording LMP the ability to mobilize very quickly to go in any direction. For Bobcat Trail CDD we intend to use a maintenance crew of 4-5 to service the property over 1-1 ½ days. We have always felt that a smaller crew does a much belterjob than a large crew. In addition, we will have two supervisors including our Irrigation Supervisor and our Fertilizer/Pest Supervisor. As for trained technical staff, we will be utilizing 4-6 additional skilled technicians to address, irrigation, annuals, fe1tilization and pest control of the community throughout the year.

SERVICE AND SITE SUPERVISJON-LMP will be providing hard copies of our work activity reports to the property manager; applicable maintenance form, pest control forms, irrigation forms. The Sarasota Branch Operations Manager is Miguel Mares Manager. Miguel, will be making monthly visits to the property performing quality control checks and ensuring that the finer detail work is being performed. Your account manager James Bennet in addition to inspecting his crews during the service will also perform monthly Maintenance Quality Inspections (MQI); this is a program where LMP performs an in house scored inspection that also includes pictures with detailed notes on issues observed. This inspection is provided to the property manager, LMP Corporate Management and passed down to the maintenance crews as an" items to correct" punch list.

EXPERIENCE- LMP has been in business since 1989. We are a family owned company based in Tampa with offices in, Lutz, Dover and Sarasota. We employee over 220 employees and have roughly I 00 trucks on the road each and every day. In our bid package you will see a partial list of our various customers. I would encourage you to pick out any of those customers that you would like to contact and we will supply you with their contact information. This is how committed we are to our quality as we firmly believe you can contact any one of our customers and they will tell you just how pleased they are to have LMP as their landscape maintenance partner. Currently we work with over 25+ Community Development Districts throughout the state of Florida. Below is a Iisl of several of them.

1. Waters Edge COD
2. Willow Bend Osprey HOA
3. Harrison Ranch CDD
4. Greyhawk Landing COD
5. Venetian COD
6. Waterset No1th COD
7. Waterset Central COD

a Covington Park COD

9. Providence Lakes HOA
10. Parkway CDD
11. Panther Trace / COD
12. Panther Trace 11 CDD
13. Providence Lakes IIOA

14. Cory Lake Isles CDD
15. Bexley COD

OSAR

IMP

BOBCAT TRAIL CDD
Operational Narrative,

UNDERSTANDING THI·, SCOPE OF WORI<

Being a service provider that currently maintains over 25 CDD's in the of Florida, we fully understand the scope of work and are very committed to working hard to improve the overall appearance of Bobcat Trail COD. All of our technicians are University of Florida certified in Best Management Practices (BMP) which is critical when considering a vendor. This is impo11ant because our technicians (felt./pest and irrigation) are trained to diagnose the start of an issue on your property, which helps to reduce any issues before they become bigger issues. Ultimately, it is our responsibility to make the landscape of the property look the very best at all times, and we can assure you that we fully understand the high level of service expectations .We also understand the expectation of the specifications that they provide to contractors probably better lhan any of the other bidders.

FINANCIAL CAPACITY

Included in our bid package is a list of vehicles and equipment. Our bid package outlines the trucks, mowers, miscellaneous equipment owned as well as our insurance coverage information. Working for several Fortune 500 companies, we understand the importance of being stable as a business. These companies as well as many other customers put their largest uninsured asset in the hands of LMP to oversee for them and we welcome the challenge to take ownership of their landscape.

PRICE

We believe our pricing is very thorough and very well thought out to be a win/ win for both pa11ies. We understand what the job needs are and have accounted for all items in our bid. We also fully understand that pricing is important in the evaluation process, but we are also in the relationship business and take pride in our reputation on being a good operational company that provides high level quality service at reasonable prices. We honor our prices for the life of the contract and you will not have any issues of bait and switch tactics which do occur when a company has low bid portions of the contracts.

38

REASONABLENESS OF ALL NUMBER. A-207

We have no problem and are accustomed to being held fully accountable. We provide fertilizer bags now to many or our customers and understand if we missed the mark on an item like fertilizer then !he customer still expects the fertilizer lo be applied to all areas at no additional cost. If an item like fe1tilizer quantity is inaccurate, then what else was missed in the pricing process? The contractor who made the error in their evaluation will most likely then look at other areas to cut back on to account for their error in evaluating the property when creating their pricing.

18

IMP

(3)

BOBCAT TRAIL CDD
overatio11al Narrative

IRRIGATION SYSTEM MAINTI.NANC:E PROGRAM f.OR BOBCAT TRAIi. COD

There are approximately 70 irrigation zones at Bobcat Trail CDD. LMP irrigation pricing includes a comprehensive monthly inspection, clock and zone adjustments as necessary, along with an irrigation inspection repol'l for the common areas. Irrigation controller settings will be adjusted for lhc following reasons :seasonal changes, periods of drought, daylight savings time, turf and plant conditions, and during regular irrigation inspections. LMP wil I mn each zone for 4-5 minutes. checking for leaks, any coverage issues and also checking that all nozzles are working properly. The amount of time spent to inspect common area irrigation, prepare the irrigation inspeclion report for the common areas would be 16 hours per month. The detailed irrigation report will list zones inspected, thc run time for each zonc and any minor is ues corrected during the inspection. The irrigalion report will be provided to the property manager along with recommended repairs and or upgrades.

TURF FERTILIZATION PROGRAM

Prior to any fertilizer applications, LMP will perform a soil test to measure for available nutrient and ph levels. This sample will be sent to a local lab for soil analysis and these results will be provided to the property manager.

LMP has the ability to have fertilizer custom blended by our fertilizer vendors specifically to address the soil conditions at Bobcat Trail CDD. All of this fertilizer will be a minimum 50% slow release nitrogen, along with various micro-nutrients.

All local fc,tilizer ordinances and IFAS BMP guidelines will be observed when applying fe1tilizer. Fertilizer will not be applied when heavy rains are anticipated, runoff avoidance. A-207

n

[redacted]P will usc other supplemental nutrient applications to the turf that contain no

nitrogen.

LM E/PALM FERTILIZATION PROGRAM

Prior to any fertilizer appl vill perform a soil test to measure for available nutrient levels and pit This sample will be sent to a local lab f nd these results will be provided to The property manager.
LMP has the ability to have fertilizer custom blended specifically to address the soil conditions at Bobcat Trail COD. All of this fertilizer will be a minimum 50% slow release nitrogen, and will be applied based on IFAS guidelines.

All local fertilizer ordinances and IFAS BMP guidelines will be observed when applying fertilizer. Fertilizer will not be applied when heavy rains are anticipated;runoff avoidance.

During the "fertilizer blackout" period, LMP will use other supplemental nutrient applications to the plant material that contain no nitrogen.

IMP

(4)

BOBCAT TRAIL CDD
Operational Narrative

TIIfff WEED CONTROL PROGRAM

LMP will implement a comprehensive turf weed control using a variety of control methods and Florida Best Management Practices (BMP) .

Spot applications of selective weed control; rotating products throughout the growing season as temperatures and weather conditions change. These applications will be conducted monthly, and as needed.

Broadcast applications of weed control; these will be performed on areas where the weeds have reached a threshold not controllable by spot applications only.

Proper Irrigation; this practice limits the spread of dollarweed and sedges, two weed species that thrive when turf is overwatered

Pre-emergent weed control; this would be a broad spectrum pre-emergent weed control product to reduce the amount of weed germination. This product would be applied once the current turf broad leaf weed issues are brought under control. Applications would be conducted late February to early March.
Areas that have been treated with weed control will be flagged with the application date and time.

A-207

SHRUB BED AND TREE RING WEED CONTROL PROGRAM

LMP will use mechanical means (pulling weeds by hand) and chemical means (non-selective and pre-emergent herbicides) to create relatively weed-free ornamental beds.

Weeds in beds and tree rings will be treated and/or pulled.

Mechanical means will be used around plants filled with undesirable grasses/weeds to prevent damage from the use of non-selective herbicides.

Weeds taller than 2 inches will be removed manually.

Pre-emergent herbicides will be used as needed to reduce germination of weeds in ornamental beds. Areas that

have been treated with weed control will be flagged with the application date and time.

IMP

Landscape Maintenance Professionals, Inc.

BOBCAT TRAIL CDD

Proposal Cost/ Service - Summary

July 9, 2020

***Exterior* Landscape Maintenance Proposal Price** includes all labor, material and equipment needed to satisfy all **Basic Maintenance Services** as per practical specifications provided by *Iriframark.*

ACTIVITY	FREQUENCY	PRICE PER YEAR
Mowing Functions Mowing Retention Ponds Mowing Woodhaven St Augustine Fertilization	42x per year	**$61,757.00 per year**
Fire Ant Control (Broadcast Treatment) Shrub Fertilization Palm and Tree Fertilization	JOx per year	**$800.00 per year**
Boulevard **Palm** Trimming	18x per year	**$4,942.00 per year**
Palm Trimming over 15" in height	Sx per year	**$7,652.00 per year**
	2x per year	**$4,500.00 per year**
	3x per ye11r	**$3,650.00 per year**
	3x per year	**$5,616.00 per year**
	2x per year	**$2,800.00 per year**
	1x per year	**$18,100.00 per year**

Tree Trimming L' >< "'-.per year

$3,640.00 per year

Irrigation System Maintenance

12x per yenr

$11,340.00 per year

Freeze Cloth Install (As Required)

***** Mulch Installation**

SJ0.00 ucr hr (s111111l;1rel) /.AS.Oil per hour (;1rle1· hours)

1x per year **$15,000.00 per year**

Deliw!r mu{ imtaf/ e.\-timated 3fJfJ 01.. ...mf.\- of Pine !Jnrl< Mulch(«' S.'ifl.fJfJlper Cu. ***Yard***

*****ornamental beds and tree rings up** to **an overall depth of** 3"

Annual Flowe.-s Install (250 4.5" plants)

Item
Annual Flowers (4.5") Mulch

26 sre

BOBCAT TRAIL COMMUNITY - MAINTENANCE MAP





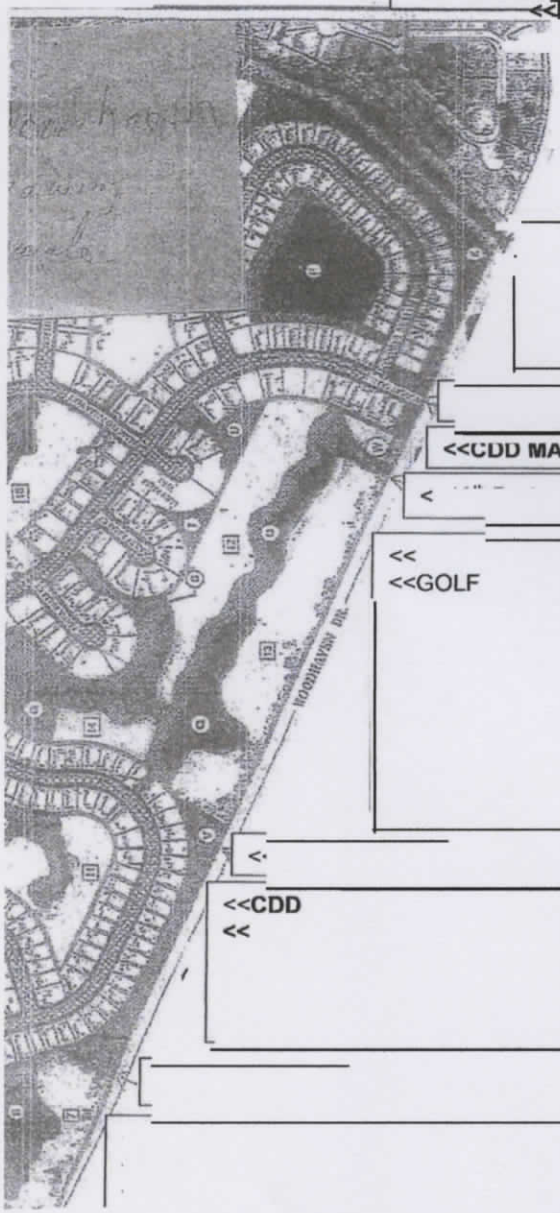
<<CDD

<<

<<MAINTENANCE

MMUNITY CENTER/GOLF COURSE

WOODED AREAS.



<<CDD MAINTENANCE

<

<<

<<GOLF

<

<<CDD

<<

---

25 sec

□

Calcasieu Blade
white stake
white stake
WOODMAN'S
WOODMAN'S No. 3
Canal

C-* -1-13-9 -0 0 -1 0 05 2.82

p 1141-00-1010 5.36

ROADWAY LIMIT LINE
PARCEL PATTERN

SO 0 300

D--- -

1139-00-1015 --6-.89 --

Q 1141-00-1015 10.89

E 1139-00-1020 2.98

R 1141-00-1016 O B7

ROADWAY PATTERN

F 1140-00-101 5 5.32

S 1141-00-1017 0.!;1

NO T ES :

1140-00-1020 17.07

H- 1140-00-1030 2.64

I 1140-00-1035 4.0 4

T 1141-00-1018 0.40

U 1141-00 -1019 O.ll2

V 1141-00-1020 1.87

1. AREAS DEPICTED ARE FOR INFORMATIONAL PURPOSES ONLY.
2. THIS MAP IS BASED ON AVAILABLE PUBLIC RECORDS DATA FROM SARASOTA COUNTY.
3. THIS MAP DOES NOT REPRESENT A BOUNDARY OR FIELD SURVEY AND IS NOT TO BE RELIED UPON FOR ANY BOUNDARY DETERMINATION.

~M ~~114~0-0~0-1052 0.18

Z	1139-11-0906	10.10
PARCEL AREA	118.82	
ROADWAY AREA	43.70	
TOTAL AREA	162.52	

BOBCAT TRAIL

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
1350 Bobcat Trail

=I>
N

North Port, Florida 34288

0
~>

F.Oi1 BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

BOBCAT TRAIL COD OWNED PROPERTY

433 COMMERCIAL COURT, SUITE 200 VENICE, FL 34292
TEL (941) 92-5293 FAX (941) 412-1043

PROPERTY OWNER FIGURE

A-207

<<Canal

<<Back Gate

<13th Drainage & White Stake

<<
<<COURSE

<<
<<MAINTTENANCE
<<

<White Stake

<<
<<MAINTENANCE
<<

<< White Stake

<<GOLF
<<COURSE
<<MAINTENANCE

1/11"

<<Toledo Blade Blvd•

78 SMC

A-207

V alleyCrest

L.:'\n<I cnpt:f'11inlcnan e

To:·Lou Rol;lplo CO_D From: Valley Crest Date: 10/1/12
RE:.Addendum To the contract

530 Rusly Marhall Dill'e En,:l wood, Floridn -'22.. I lU'U' 73:3600
fox; 94i.¼7J. H

www.valleycrest.com

As djsc;u sed !Jer is th ac(deiu:ll)rrr ta ijdd ten cuts per fisail year for the cuttin :of berm around·the lake..h. n.im t Hos it.al fur $-300 a-month,.raising the base yearly 1:;ontract in the amount of $3000 a year. This will include. a brush ho mowin of the berm around the overflow part ofthe lake ani, the weed eatfrig around the overfi ow drains. providing a c ;;;.-p-;;·i:;·1 ·'r..n:. . Tll- S.are g mg-:. oe set up eachonth e ce t he- mo r-is ofnciii=gro ing in ually and Marc . Billingshoutd·st.art.in Oct9ber-for the e>1,tra a1:rl"r;mnt. Ifyou·h.ave any questions pleas let me know. Ifyou liave nQ questions this qm pe use.d s t e ;jddei'i'd.llm forth contract. :Please s_ign and·retur-n. Map highlighted in·Orange propose area to. be mo.wed:

V

= ==+

tr l /

!! l -1

'J

MarkCn.1zan

Date: 10-1-12

Lou Robbio

Oa tc: -ta(<* &"2,

30 8A<

Landscape Development Landscape Maintenance Gulf Coast Maintenance Tree Company

ATTACHMENT 9

bhadovski@bobcatcdd.com

From: Laura Filler <lfiller@bobcatcdd.com>
Sent: Sunday, August 4, 2024 6:19 PM
To: cdavis@floridacommercialcare.com
Cc: Jeffrey Brall; Bill Hadovski; Valerie Duemmel
Subject: BCTCDD Landscape Committee RFP

TO: Charles Davis

Florida Commercial Care

FROM:BCTCDD Landscape Committee

RE: RFP

The BCTCDD Landscape Committee has completed it's work to identify a landscape Vendor to implement the work of our FY 2025-2027 Landscape Maintenance Contract.

We thank you for your submission of an RFP to the landscape committee. The RFP's were examined carefully by the committee and we spent numerous hours evaluating, comparing, and discussing them.

At this time, the Landscape Committee believes that Artistree Landscape Maintenance & Design is the best fit for Bobcat Trail and our landscaping needs.

Thank you again for the submission of your RFP.

Respectfully submitted by the BCTCDD Landscape Committee:

Laura Filler, Chair. Val Duemmel. Bill Hadovski. Jeff Brall Board Liaison

--
Laura

bhadovski@bobcatcdd.com

From: Laura Filler <lfiller@bobcatcdd.com>
Sent: Monday, August 5, 2024 1:34 PM
To: brendan@greentechgardeners.com
Cc: Jeffrey Brall; Bill Hadovski; Valerie Duemmel
Subject: BCTCDD Landscape Committee RFP

TO: Brendan Dooley

GreenTech Gardeners

FROM:BCTCDD Landscape Committee

RE: RFP

The BCTCDD Landscape Committee has completed it's work to identify a landscape Vendor to implement the work of our FY 2025-2027 landscape maintenance contract.

We thank you for your submission of an RFP to the landscape committee. The RFP's were examined carefully by the committee and we spent numerous hours evaluating, comparing, and discussing them.

At this time, the Landscape Committee believes that Artistree Landscape Maintenance & Design is the best fit for Bobcat Trail and our landscaping needs.

Thank you again for the submission of your RFP.

Respectfully submitted by the BCTCDD Landscape Committee:

Laura Filler, Chair. Val Duemmel. Bill Hadovski. Jeff Brall Board Liaison

bhadovski@bobcatcdd.com

From: Laura Filler <lfiller@bobcatcdd.com>
Sent: Sunday, August 4, 2024 5:52 PM
To: Jessica Shilling
Cc: Jeffrey Brall; Bill Hadovski; Valerie Duemmel
Subject: BCTCDD Landscape Committee

TO: Jessica Schilling

Down To Earth Landscaping & Irrigation

FROM:BCTCDD Landscape Committee

RE: RFP

The BCTCDD Landscape Committee has completed it's work to identify a landscape Vendor to implement the work of our FY 2025-2027 Landscape Maintenance Contract.

We thank you for your submission of an RFP to the landscape committee. The RFP's were examined carefully by the committee and we spent numerous hours evaluating, comparing, and discussing them.

At this time, the Landscape Committee believes that Artistree Landscape Maintenance & Design is the best fit for Bobcat Trail and our landscaping needs.

Thank you again for the submission of your RFP.

Respectfully submitted by the BCTCDD Landscape Committee:

Laura Filler, Chair. Val Duemmel. Bill Hadovski. Jeff Brall Board Liaison

bhadovski@bobcatcdd.com

From: Laura Filler <lfiller@bobcatcdd.com>
Sent: Thursday, August 8, 2024 8:32 PM
To: eileeng@russelllandscape.com
Cc: Jeffrey Brall; Bill Hadovski; Valerie Duemmel
Subject: BCTCDD Landscape Committee RFP

TO: Eileen Grum

Russell Landscape

FROM:BCTCDD Landscape Committee

RE: RFP

The BCTCDD Landscape Committee has completed its work to identify a landscape Vendor to implement the work of our FY 2025-2027 landscape maintenance contract.

We thank you for your submission of an RFP to the landscape committee. The RFP's were examined carefully by the committee and we spent numerous hours evaluating, comparing, and discussing them.

At this time, the Landscape Committee believes that Artistree Landscape Maintenance & Design is the best fit for Bobcat Trail and our landscaping needs.

Thank you again for the submission of your RFP.

Respectfully submitted by the BCTCDD Landscape Committee:

Laura Filler, Chair. Val Duemmel. Bill Hadovski. Jeff Brall Board Liaison

--
Laura

ATTACHMENT 10

BCTLC YEARLY CONTRACT SCHEDULE GRID

TASK	January	February	March	April	May	June	July	August	Septemt	October	Novemb	Decemb	TOTAL
Mow Line Trim Blow	2	2	4	4	4	4	4	4	4	4	4	2	42
Hard Edge	2	2	4	4	4	4	4	4	4	4	4	2	42
Trash Pickup	2	2	4	4	4	4	4	4	4	4	4	2	42
Bed Edge	1	1	2	2	2	2	2	2	2	2	2	1	21
Fertilize Shrubs			1		1					1			3
Fertilize Palms			1		1					1			3
Fertilize Turf		1		1			1			1		1	5
Fertilize Trees			1		1					1			3
Insecticide Turf	1		1		1		1		1		1		6
Fire Ant Control	1	1	1	1	1	1	1	1	1	1	1	1	12
Insecticide Shrubs	1	1	1	1	1	1	1	1	1	1	1	1	12
Weed Control Beds	1	1	2	2	2	2	2	2	2	2	2	2	22
Pre-Emergent Beds		1				1							2
Prune Shrubs	1	1	1	1	1	1	1	1	1	1	1	1	12
Trim Palms 15' or <	1		1	1	1	1	1	1	1	1	1		10
Trim Palms >15'					1								1
Trim Oaks 17' Max	1		1	1	1	1	1	1	1	1	1	1	10
Soil Sample		1							1				2
Mulch Maintain 3" Depth										1			1
Weed Control Roads	1	1	1	2	2	2	2	2	2	2	2	1	20
Mow Woodhaven Sdwlk-Road	1	1	1	1	2	2	2	2	2	2	2	1	18
Mow "Under Trees"	1	1	1	1	2	2	2	2	2	2	2	2	18
Commercial Lake Tower @ Hospital			1	1	1	1	1	1	1	1	1	1	10
Weed Control Turf		1									1		2
Irrigation/ Distribution Components	1	1	1	1	1	1	1	1	1	1	1	1	12
Install Annuals 250 4"			1			1					1		3